

Meaning of Government

Government can be defined in three major ways. These are:

1. **Government as an Institution of the State:** Government as an institution of the state can be defined as the machinery established by the state to organize, formulate and implement policies in the society. Also, it can also be seen as the machinery that is set up by the state to run its affairs and administer its various functions and duties to the citizens. Government is made up of three arms, organs or branches - the legislature, executive and judiciary.
2. **Government as a Process or an Art of Governing:** Government as a process/art of governing is the process of administering a given state. It is the process of carrying out the day-to-day administration of the affairs of a state which involves making, enforcing and interpreting laws. The activities of a given government involve a clear-cut procedure specifically laid down in the constitution of a state. A government is a body vested with supreme power over the affairs of a state. The supreme power of a state lies in the government thereby giving it the authority to make, enforce, interpret laws and punish offenders.
3. **Government as an Academic Field of Study:** Government as an academic field of study refers to the study of political institutions, processes and theories taught in schools, colleges and higher institutions of learning. It is called Political Science in higher institutions. Government includes the study of political institutions, ideas, values and doctrines about politics on what constitutes the welfare of the people. It covers political theory, political institutions, comparative government, public administration, international relations, etc. It is a subject studied in various educational institutions

Branches of Government as an Academic Field of Study:

1. Political History.
2. Political Economy.
3. Political Sociology.
4. Political Behaviours.

5. Public Administration.
6. International Relations.
7. Political Thought/Theories.
8. Conflict Resolution/Studies.
9. Inter-Governmental Relations.
10. Comparative Government and Politics.
11. Civil Military Relations/Strategic Studies and Defence.

Features/Characteristics of Government:

1. Public Support:- This confers legitimacy on the government and gives it the authority to rule.
2. Constitution:- Government makes a set of agreed rules which guides it in the administration of the state.
3. Power:- Government has the ability to command people to behave in a certain way or take a particular course of action irrespective of their wishes.
4. Law:- There must be laws to coordinate and regulate the conduct of the government and people.
5. Periodic Change:- Government is meant to change after a specific period of time usually through periodic elections.
6. Revenue:- Government makes revenue or generates funds in different ways to enhance its administration through the imposition and collection of taxes, royalties, excise/duties, etc.
7. Personnel:- This refers to able-bodied people that assist the government to implement its policies.
8. Provision of Social Amenities:- The government is responsible for providing amenities or infrastructures such as good roads, schools, electricity, hospitals, pipe-borne water, etc. that improve the welfare or standard of living of the people.

9. Universality:- The jurisdiction of the government must reach or extend to everyone within the state.
10. Public Institutions:- The institutions consisting of the government of a political society differ from other institutions within the society.

Roles of a Government:

1. Making of laws.
2. Diplomatic relations.
3. Enforcement of laws.
4. Formulation of policy.
5. Settlement of disputes.
6. Protection of human rights.
7. Provision of social amenities/infrastructures

Functions of Government

1. Settlement of disputes.
2. Maintenance of security.
3. Administration of justice.
4. Protection of civil liberties.
5. Making/enactment of laws.
6. Maintenance of law and order.
7. Raising and spending of funds.
8. Management of foreign relations.
9. Promotion of national integration.

10. Defence and security of the state.
11. Provision of public goods and services.
12. Provision of employment opportunities.
13. Formulation and implementation of policies.
14. Provision of social and infrastructural facilities.
15. Promotion of economic growth and development.
16. Protection of the rights and liberties of the citizens.
17. Fostering a sense of belonging and unity in the state.
18. Operation of social welfare programs e.g. health, education, etc.
19. Provision for and regulation of the conduct of periodic elections.
20. Regulating the economy through its monetary and fiscal policies.
21. Maintaining foreign diplomacy, that is, good relations with other states/countries.

Importance of Government as a Field of Study

- It enables people to know how societies are ruled.
- It equips individuals to be conscious of their rights, privileges, duties, and obligations to the state.
- It gives insight into the formulation of foreign policy and the conduct of relations among nations.
- It guides the people in their choice of the right and most suitable form of government for the state.
- It enables citizens to have a proper assessment of the state, its institutions, and the principles of government.
- It provides fundamental knowledge for further studies in the field of political science, sociology, mass communication, law, etc.

- It provides people with the basic knowledge to occupy responsible positions in national and international institutions e.g. Foreign Diplomats, Heads of State, etc.

Importance of Government as an Art of Governing

- It enacts laws to promote good governance.
- It maintains external relations with other nations.
- It provides external security through the armed forces.
- It guarantees the fundamental human rights of its citizens.
- It uses the judiciary to promote and maintain justice through the courts.
- It provides social amenities like electricity, hospitals, good roads, schools, water, etc.
- It maintains law and order through the immigration department, police force, customs and excise department, etc.
- It promotes economic development such as providing an enabling environment, infrastructural facilities, etc.

Reasons for Studying Government

- It prepares citizens for the future.
- It widens the citizens' political horizon.
- It enables people to compare political systems.
- It offers and develops leadership skills and training.
- It provides career opportunities for those who study it.
- It helps individuals to develop a positive political culture.
- It provides knowledge of the political history of the state.
- It improves the relationship between the rulers and the ruled.
- It enables people to know the dos and don'ts of the government.
- It prepares citizens to take part in the governance of the country.
- It teaches people to be objective in their analysis of political issues.

- It puts the citizens in a position to defend their rights when violated.
- It equips people to become effective politicians, political advisers, etc.
- It enables citizens to differentiate between good and bad government.
- It helps citizens to know the successes and failures of their past leaders.
- It helps people to know and understand how other countries are governed.
- It develops and instils a sense of logical thought and analysis in the learner.
- It helps people to know what is happening in their country and around the world.
- It encourages political participation and arouses citizens' interest in governance.
- It enables people to understand the system of government adopted in a country.
- It exposes students to basic concepts to enable them to resist and prevent tyranny.
- It helps citizens to find solutions to the political problems/challenges of the country.
- It helps people to be abreast with national and global political occurrences/developments.
- It enables people to know their rights, duties, and obligations as citizens in a given political system.
- It helps people to understand the form of government suitable for a particular state/country.
- It exposes students to the existence, importance, and functions of international organizations.
- It inculcates the spirit of patriotism and nationalism and offers training in citizenship to the citizens of the country.

- It deepens the understanding of international relations and a state's commitment to international organizations.
- It provides solutions to socio-political and economic problems by the introduction of programmes and policies and best practices in other political environments

State

A state is a politically organized group of people living in a defined geographical area with an organized government. It can be defined as a politically organized body of people inhabiting a defined geographical entity with an organized legitimate government.

Examples of states are Nigeria, Ghana, India, Russia, the U.S.A., Canada, China, Kenya, Cameroon, etc.

Attributes/Features/Characteristics of a State

- 1) Territory/Geographical Area:- A state must have a defined boundary that separates it from other states. For example, Nigeria shares borders with Chad, Cameroon, Niger and the Republic of Benin.
- 2) Permanence:- A state must be permanent; it is not something that exists today and disappears tomorrow. While the government of a state can change, a state cannot change.
- 3) Government:- This is the machinery through which the will of the people in a state is formulated and realized/implemented.
- 4) Constitution:- A state must have a constitution which is a body of rules and regulations that govern the conduct of both the rulers and the ruled.
- 5) Sovereignty:- This is the power of the state to make and enforce laws and take decisions without interference from within and outside the state.
- 6) Population:- A state must have people living in it and there is no limitation to the number of people that makes up a state.
- 7) Recognition:- A state must be recognized both internally and externally.

State and Government

The state and government are inseparable. A state can be said to be a cooperate entity while the government is set up by the state to organize and realize its set goals and objectives. No state can exist without a government.

Some of the differences between a state and a government are:

- A state is a territorial association of people with defined boundaries while a government is an administrative institution within a state.
- A state depends on the government to carry out its activities while a government is machinery through which the functions of a state are performed.
- A state has its elements as population, sovereignty, government and territory while a government has its main organs as the legislature, judiciary and executive.
- A state is more inclusive and therefore, greater than a government. That is, a state embraces all the people and associations within a given area while a government is not as inclusive as a state.
- A state is permanent; it is a continuing entity that can hardly be overthrown or changed while a government is a temporary institution that lasts over a given period of time and can be overthrown.

State and Nation

A state exists where there is a territory, people, government and sovereignty while a nation may be seen as a body of people who are naturally linked together by the same language and culture. A state lacks the feeling of nationality or oneness among the people while a nation can tolerate subjection to people who do not share the same language, culture and nationality.

Society

A society is a group of people who share similar values, laws and traditions living in organized communities for mutual benefit. It is referred to as an organized

group of persons associated together for the purpose of religion, benevolence, culture, science, politics, etc.

Features/Characteristics of a Society.

- It is permanent in nature.
- The roles in society are dynamic.
- Membership in a society is voluntary.
- It is characterized by a unique culture.
- Members depend on one another for survival.
- It is characterized by cooperation, competition, and conflicts.
- The rules and regulations of the society are binding on all residents.
- It is controlled by rules/regulations, norms, customs, and conventions.
- It is characterized by common political, social, and economic interests.
- It applies sanctions on its members as a means of ensuring or effecting discipline.
- It is characterized by common history, tradition, language, religion, and sense of value.
- It applies the use of coercive means to ensure compliance with norms, rules, and customs.

Difference/Relationship Between a Society, State and Nation

Society refers to a community or social organization built upon commonly accepted rules, principles, norms and expectations that manage relations between its members and organizes their activities towards a shared purpose(s).

A state generally refers to collective institutions regulated by a legitimate government.

A nation refers to a group of people sharing a common history, language(s), culture, customs and geographical territory in relation to other people. A nation is not necessarily confined within a given country. The people in a nation are not satisfied when they are disunited.

Power

Power is the ability/authority to control the behaviour of others by making them do what they might not do of their own free will. It is the ability to enforce decisions or command others to take a certain course of action irrespective of their wish to do so. It is the ability to command others to behave in a certain way.

Forms of Power

- 1) Physical Power:- This is the application of force to ensure obedience or compel people to obey. It often causes disaster, discomfort, pain, injury or death.
- 2) Political Power:- This is derived from the people and the constitution for the people. The elected president or prime minister of a state possesses political power.
- 3) Military Power:- This is exercised by the state to maintain internal and external security through the mobilization of the armed forces (navy, air force and army). The armed forces are easily manipulated as instruments to overthrow a civilian government.
- 4) Economic Power:- This is exercised by those who own and control the means of production, distribution and exchange of goods and services in a state. An individual in possession of economic resources has influence and can command the respect of people.

Sources of Political Power

- 1) Charisma - The possession of extraordinary ability or quality to attract others may be a source of power. Such people have the zeal and charismatic attributes of a leader. Examples are Obafemi Awolowo and Nnamdi Azikiwe of Nigeria, Nelson Mandela of South Africa and Kwame Nkrumah of Ghana.
- 2) Appointment - Some people are appointed into positions to exercise political power e.g. judges, ministers, ambassadors, etc.

- 3) Constitution - This is a source through which agencies, commissions, institutions and arms of government derive their power.
- 4) Election - Political power can be acquired through periodic elections.
- 5) Inheritance - Political power can be acquired by inheritance.
- 6) Force/Coup d'état - The government can be changed through the use of force.
- 7) The Electorate/People - The people or electorate determine through elections who would exercise political power.

Other sources of power are:

1. Delegation.
2. Military might of a state.
3. The technological strength of a state.
4. The economic might/wealth of an individual or state.
5. Traditions, cultures, conventions and norms of the people.

Authority

Authority is the legal right to make and enforce laws which the citizens must obey. It is the legitimate right of a person to command and direct others.

Forms of Authority

Political Authority: This is the right to issue commands, make decisions, and secure compliance from the people.

Administrative Authority: This is the right of professionals to make decisions and obtain obedience.

Judicial Authority: This is the right of judges to issue a command in the form of fines and other punishments.

Military Authority: This is the right of the armed forces to use force in maintaining the security of a state.

Types of Political Authority

- 1) Legal Authority:- This is derived from the body of rules and regulations governing a society. It is called the constitution and can be written or unwritten. The powers of the Head of State in a democratic setting are derivable from the constitution.
- 2) Traditional Authority:- This is hereditary and is based on the norms, customs and traditions of the society. The Obis, Obas and Emirs derive their political power through this source.
- 3) Charismatic Authority:- This is derived from the extraordinary qualities which a person has that give him the right to lead or rule others.

Sources of Political Authority

- 1) Traditional Authority:- This is based on customs and traditions.
- 2) Delegated Authority:- This is given to someone to exercise functions in specific areas.
- 3) Political Authority:- This is an authority conferred on persons holding political offices.
- 4) Coercive Authority:- This is based on the use of force or threat.
- 5) Charismatic Authority:- This is derived from the belief in the exceptional ability of a leader which inspires allegiance among the followers.
- 6) Legal/Rational Authority:- This is derived from the constitution of a democratic state exercised through the three (3) organs/arms of government.
- 7) Technical Authority:- This is derived based on the level of expertise an individual has acquired.
- 8) Positional Authority:- The position a person holds determines the level of his authority over his subordinates.
- 9) De-factor Authority:- This is a situation where one person acknowledges being entitled to command. It presupposed that one is in such a position to get others to do or believe what he tells them.

10) De-jure Authority:- This is the right way to issue instructions and have them obeyed. It is acquired by the commission. A person with de-jure authority acts on behalf of others who have commissioned him to do so. When a person with de-jure authority exceeds the limit of his authority, such an act is regarded as "ultra vires".

Differences between Power & Authority

Power can be legitimate or illegitimate, while authority is mostly legitimate.

Power is the ability to command, while authority is the right to give commands.

Power cannot be delegated, while authority can be delegated with legitimized responsibility.

Resistance to power is met with force, while authority is not resisted as it has legitimacy in its orders.

The main function of power may be constructive or destructive, while the main function of authority is constructive.

People obey power holders for fear of sanctions, while in authority, obedience is based on the legitimacy of the order.

Power has the capacity to affect someone's behavior, while authority has a formal and legal right to make and enforce laws.

Note: Power and authority complement each other as none can exist in isolation.

Legitimacy

Legitimacy can be defined as the recognition and acceptance of the right of the ruler to govern the people. It is the recognition and acceptance of the right/authority of a government and its institution by the people to make and enforce laws. Legitimacy can also be defined as the recognition and acceptance of the rulers by the people as expressed in compliance with the authority. A government is legitimate if it entered into office through a recognized and accepted procedure such as a free and fair election.

Ways of Acquiring Legitimacy

- Charisma of the leaders.
- Observance of the rule of law.
- Performance of government.
- Method of changing government.
- Acceptable ideology of the government, e.g., socialist, capitalist, etc

Factors that Promote/Determine the Legitimacy of a Government

- Charisma of the leader.
- Respect for the rule of law.
- Popular support of the citizens.
- Holding periodic free and fair elections.
- Respect for fundamental human rights.
- Responsible and responsive leadership.
- Tolerance to opposing or divergent views.
- Adoption of acceptable policies/good government.
- Respect for the customs and traditions of the people.
- Ability of the government to uphold the state's ideology.
- Adherence to the provisions of the constitution of the state.
- Government that is popularly elected through free and fair elections.
- Appreciable level of socio-economic development in the state by the government.
- Acceptance of the government by the international community/international recognition.

- Involvement and participation of the people in the management of the affairs of the state.

Sovereignty

Sovereignty is derived from the Latin word "superanus" which means "supreme".

Sovereignty is the supreme power/authority of the state to manage its affairs and control its territory without any external control or interference. It is the supreme power of the state to make and enforce laws within its territory or jurisdiction without any external interference or influence. The idea of sovereignty originated from Jean Bodin (1530-1596).

Characteristics of Sovereignty

- Indivisibility.
- Inalienability.
- Permanence.
- Exclusiveness.
- Unity and originality.
- Comprehensiveness.
- Absoluteness or illimitability.
- Independence of foreign control.

Types of Sovereignty

1) External Sovereignty:- This is the power of the state to exist and conduct its affairs without any external interference.

2) Internal Sovereignty:- This is the power the state has to make and enforce laws within its area of authority or jurisdiction.

3) Legal Sovereignty:- This is the power of the government to make and enforce laws in a state.

4) De-facto Sovereignty:- This refers to the body of people who use force to make citizens obey their will.

5) De-jure Sovereignty:- This is a body made up of laws and their applications.

6) Political Sovereignty:- This refers to the supreme power of the state and the will of the state is obeyed.

Location of Sovereignty in a State

Sovereignty can be located in any of the following:

1. Federal state
2. Unitary state
3. Military regime
4. Monarch state
5. The electorate..

Internal & External Limitations of Sovereignty

Internal Limitations to the Exercise of the Sovereignty of a State

- Public opinions.
- The constitution.
- Religion and culture.
- Delegated legislation.
- Customs and traditions.
- Technical and military aids.
- Activities of pressure groups.
- Resources/type of government in power.

External Limitations to the Exercise of the Sovereignty of a State

- Diplomatic immunity.
- Defence pact and alliances.
- International public opinion.
- Technical assistance from other states.
- Interdependence of states in trade and commerce.
- Geographical location of a country e.g. a landlocked country.
- International laws - they impose certain restrictions on states.
- Influence of powerful states/nations e.g. China, France, UK, USA, etc.
- Membership of international organizations e.g. African Union (AU), ECOWAS, etc.
- Globalization - modern technology could be used against a country's sovereignty.
- International treaties and agreements - states obey the terms of international treaties and agreements to which they are parties/signatories.

Political Processes (Political Socialization)

Political socialization is defined as the process of acquiring political beliefs, values, attitudes and citizenship training that shapes a citizen's political behaviour. It can also be defined as a process through which a person develops political beliefs and opinions that influence their behaviour in social spheres. It is the way in which people acquire values and opinions that shape their political stance and ideology.

Agents of Political Socialization

1) Family: This is the most significant agent of the socialization process. Parents or guardians assume the role of guiding and providing their children with their initial system of beliefs, norms and values which are based on their ethnic community, social status and religion. The system that parents inculcate in children normally

has a profound effect throughout their lives. Children observe and learn their parents' political behaviour, which determines their future political attitudes and inclinations.

2) School: This is the second most important agent of socialization. The official purpose of school is to transfer subject knowledge and teach life skills but students also learn social skills through their interactions with teachers, staff and other students. In schools, people are educated about the issues of politics in a country and can play the game of politics in higher institutions.

3) Peer Group: Peer groups are comprised of age mates and those with a similar status. It enables children to form bonds on their own terms and learn from each other without the direction and authority of an adult.

4) Mass Media: These include televisions, magazines, radios, the internet, etc. They have been shown to influence an individual's preferences. People are politically socialized through what they see, listen to and read in the mass media. The mass media relays impersonal information in a one-way direction to a passive audience and empowers them by giving them wider information.

5) Social/Religious Groups: Members of social and religious groups abide by the rules and regulations governing them and in the process, they are socialized.

6) Political Parties: The electorate and party members are socialized politically in political parties. This is done through political education, manifestoes and campaigns.

Relationship between the Executive & other Arms of Government

The constitution and other arms of government exert some form of control or check on the executive as it helps to reduce the dictatorial tendencies of the executive. Some of these checks/control are:

- Conventions, customs and traditions can control the executive.
- The legislature makes law but it is the executive that signs bills into law.
- International laws, sanctions, bans, embargos and boycotts can control executive actions.

- The executive prepares and presents the budget but it must be approved by the legislature.
- The executive has the power to declare a state of emergency or war but the Senate has to approve.
- The legislature can control the executive through the power of questioning on the floor of the House.
- The executive has the power to appoint officials to state offices but such appointments must be approved by the Senate.
- The constitution specifies clearly the powers of the executive in the constitution. Any act or power contrary to this can be declared ultra vires.
- Judicial application of certain writs e.g. writ of mandamus, habeas corpus injunction, etc. can be used to compel the executive to do certain things.
- Actions of the executive can be challenged in a court if they are unconstitutional. The court declares them unconstitutional through judicial review or ultra vires.
- Impeachment of the president in the presidential system of government and vote of no confidence on the cabinet in the parliamentary system are forums of control.
- The executive signs treaties and agreements with the governments of other countries but such treaties and agreements must be ratified by the National Assembly.

Political Processes (Political Participation)

Political participation is a set of voluntary activities in which the citizens of a country involve themselves directly or indirectly by influencing public policies and decision making. It is the process through which citizens exert influence on the political system of the country. Political participation involves the voluntary participation of citizens in the political affairs of the country.

Benefits of Political Participation

- It helps in creating political awareness.
- It helps in making the government responsible and accountable.
- It offers some psychological satisfaction to those who are interested in the leadership and administration of government.
- It helps to legitimize the government as it gives them the necessary support and mandate to govern the country on behalf of the people.

Forms of Political Participation

1. Holding political offices.
2. Analyzing political issues.
3. Involvement in campaigns.
4. Protest/criticism and petition.
5. Membership in pressure group.
6. Dissemination of party propaganda.
7. Voting, contesting and supporting candidates during elections.

Ways Citizens Participate in the Affairs of the State

- Registering as a voter.
- Acting as party agents.
- Holding of public office.
- Voting during elections.
- Contesting for elections.
- Attending political meetings.
- Protests and demonstrations.

- Serving as election observers.
- Membership of a political party.
- Donations to political parties: monetary or materials.
- Financing/sponsoring of political parties/candidates.
- Attending political rallies and campaigns/political education.
- Participating in political debates, analyses, predictions or discussions.
- Composition of party anthems, songs, jingles, wearing of face caps, vests, etc

Political Process (Political Non-Participation)

Political non-participation refers to the absence of citizens from the political process of a state.

Types of Political Non-Participation

- 1) Apathy: This is characterized by the lack of interest in the political and social affairs of the nation.
- 2) Alienation: This is the absence of political participation by individuals because they feel that the government is indifferent to attitudes and no one in authority gives importance to their views.
- 3) Cynicism: This involves a certain dislike for politics and politicians. It manifests itself in a variety of ways such as the feeling that politics is a dirty business, politicians are not to be trusted, individuals are at the mercy of manipulating groups, etc.

Meaning & Features of Communism

Communism is defined as a form of economic and political system in which the means of production and exchange are commonly owned and equally distributed. It is a political and economic system in which the community through common ownership, collectively controls all the means of production of goods, services, exchange and distribution.

In communism, the means of production are controlled and managed by the Central State Authority. The slogan of communism is "from each according to his ability and to each according to his needs". Karl Marx, a German philosopher and economist, writes that communism can be achieved if the state's services and instruments of coercion and repression cease to exist.

Examples of countries that practice communism are Cuba, China, Vietnam, Laos and North Korea.

Features of Communism

- The economy is collectively planned.
- Most communist leaders are dictators.
- Economic planning is highly centralized.
- The state applies the use of force to achieve goals.
- It arose as an attack on the evils of industrialization.
- Production activities are meant for common purposes.
- There is equal distribution of the nation's wealth among citizens.
- Citizens receive resources only according to their needs and ability.
- Most communist states are one-party states/opposition is not tolerated.
- It is a classless society where everybody is equal socially and economically.
- The community, through common ownership, controls all the means of production.
- It stipulates a compulsory confiscation of private properties without compensation.
- It advocates the complete abolition of government and a stateless society where there is no government exploitation or oppression.

Merits & Demerits of Communism

Merits of Communism

1. Equitable distribution of wealth.
2. It creates a stronger social community.
3. Rapid development and economic growth.
4. Employment opportunities abound in the communist structure.
5. It reduces the impact of socio-economic differences in the society.

Demerits of Communism

- There is no freedom of speech.
- Dissent is not permitted under communist rule.
- There are materialistic approaches to life problems.
- There is no distinction between propaganda and education.
- The Central State Authority holds all the means of production.
- It is a government structure that comes with high-handedness.
- Central planning is difficult to achieve in this type of government.
- The needs of consumers are not important in a communist government.
- There are strict rules in place that govern the structure of a classless society.
- Efficiency and productivity are usually low since there is little or no motivation for workers/workers are treated like machines.

Meaning & Features of Communalism

Communalism is a socio-political system based on common ownership of land in which the sense of togetherness in the community is the factor of unity. It is also a

system in which the mode of production, the land and what it produced belong to all members of the community and are equitably distributed or shared.

Communalism is the first, most primitive and simplest form of government. It is a social and political system which practises group ownership and use of properties by members of a community.

Features of Communalism

- It is a classless society.
- It encourages free labour.
- It encourages collectivism.
- It promotes group interest.
- It mostly rests on prejudices.
- It is practised in small communities.
- Production is at a subsistence level.
- Absence of commodification of labour.
- There is collective ownership of property.
- It is advocated with land and its products.
- It causes rivalry and violence among the masses.
- It encourages the equitable distribution of resources.
- There is the direct participation of all in decision making.
- It is associated with underdeveloped or third-world countries.
- Members of a communal society share common culture and identity.
- It promotes collective interest and discourages individual objectives.
- It promotes the unwillingness to accept other belief patterns and faiths.

- It allows emotional disobedience to the extent of crossing the bounds of the law.
- Everybody has the spirit of cooperation; they help each other in building houses, farming, etc.

Merits & Demerits of Communalism

Merits of Communalism

1. It creates employment opportunities.
2. It gives room for equal distribution of income.
3. Decisions are collectively made by the community.
4. The community controls communication and transportation.

Demerits of Communalism

1. Slow decision making.
2. It hampers personal growth.
3. It does not give financial freedom.
4. The employment opportunities available are mostly in the agricultural sector.

Meaning & Features of Feudalism

Feudalism can be defined as a socio-political and economic system that existed during the middle ages which was based on land ownership between the lords and the serfs/vassals/slaves. It is the identification of landed property with sovereignty over a parcel of land which becomes a private hereditary possession and an asset to the family in exchange for service or labour.

Feudalism is a form of decentralized oligarchy (government controlled by a few people), based on land ownership. An example of feudalism is someone farming a piece of land for a lord and agreeing to serve under the lord during the period of war in exchange for living on the land and being protected.

Features of Feudalism

- It is solely based on land ownership.
- Vassals hold land in trust for the lords.
- The lands were owned by kings or emperors.
- There was constant war and insecurity in the state.
- It is the duty of the land owners or lords to protect the serfs.
- If a vassal dies without an heir, his property is reverted to the lord.
- The land users (serfs) must work and offer services to the king in return.
- If a vassal is guilty of treason, the lord might claim his possession by forfeiture.
- There was evidence of a close personal bond between the lords and the vassals.
- It was a class system - the land owners and the serfs or vassals who had no land.
- The lords exercise governmental power (legislative, military, executive and judicial power) over the vassals who have no political right.

Merits & Demerits of Feudalism

Merits of Feudalism

- It enhanced security.
- Decisions were made quickly.
- It laid the foundation for capitalism.
- It provided the serfs with a level of security.
- It brought about order and personal loyalty.

- It instituted orderliness and avoided anarchy.
- It allowed vassals to farm on lands they did not own.
- Presence of cordial relationship between the lords and vassals.
- It succeeded in keeping the spirit of liberty alive in medieval Europe.
- It fostered self-reliance and a love of personal independence among the big lords.
- It provided a temporary framework of order on which a true and reliable national life could grow.

Demerits of Feudalism

- It was a breeding ground for anarchy.
- Inability to form a strong national government.
- It created confusion between private and public rights.
- It created a disintegrated state that could not act as a whole.
- It gave rise to autocratic leaders who ruled the vassals as they wished.
- There were constant wars among the lords in search of more territories.
- The system was undemocratic as tenants were not allowed to choose their leaders.
- The system weakened the sovereignty of the state since every lord wielded some political power.
- The system was exploitative because the slaves, serfs or vassals and peasants were used and dumped.
- It encouraged injustice since the lord presided over disagreements between himself and the land tenants.
- It encouraged domination; it produced very powerful lords who controlled and dictated the socio-economic and political lives of the tenants.

- It did not encourage personal initiative and creativity; the tenants were not allowed to think out better ways of doing things but were made to dance to the dictates of the lords.

There was no security of land ownership; the land being worked upon by a peasant or slave could be taken away from him and given to another or the lord could lose it because of war.

Feudalism vs Communalism

The differences between feudalism and communalism are:

1. There is a dictatorship in feudalism while there is none in communalism.
2. There is a feudal lord in feudalism while in communalism, there is no lordship.
3. In feudalism, the land belongs to the lord while in communalism, the land is communally owned.
4. In feudalism, there is segregation/class in social status while in communalism, there is equality in social status.
5. In feudalism, there is discrimination in income distribution while in communalism, there is equitable distribution.
6. Feudalism is a more advanced political system while communalism is operated in a primitive, less advanced society.
7. The feudal system has conquest and subjugation as its features while communalism is based on peace and tranquillity.
8. In feudalism, the land is a symbol of security while in communalism, the land is used as a means of economic benefit only.
9. In feudalism, there is compulsory service of vassals/serfs to the lords while in communalism, there is no compulsory service.

Meaning & Features of Socialism

Socialism can be defined as a form of government in which the means of production are owned and regulated by the state. It is a system where the means of production are owned by the whole community and operated by representatives of the people, who are responsible to the community according to a general plan. Also, it can be defined as a system where the production and distribution of goods and services are a shared responsibility of a group of people.

Goods and services are produced with the aim of satisfying the wants of the whole citizens and not for the profit derived. It is based on open political/economic theories that advocate collectivism. Socialism ideology was formulated by a German called Karl Marx who hoped to fight the evils of capitalism through his ideology. Examples of countries that practice socialism are India, Algeria and Tanzania.

Features of Socialism

- There is no privately owned property.
- Elimination of excessive exploitation and inequality.
- There is full employment for all able-bodied citizens.
- It encourages equality and equal opportunities for all.
- There are free social services e.g. education and health.
- Price mechanism is given a minor role in resource allocation.
- All members of the society cooperate to sustain the economy.
- Socialist states operate a centrally planned economy/centralized planning.
- Provision of basic human needs like food, shelter, etc. without discrimination.
- Goods are mainly produced to satisfy the needs of the people and not for profit.

- Single-party system/only one legally recognized political party is allowed to exist.
- All factors of production are fully employed in order to produce goods and services.
- State or government ownership and control of means of production, distribution and exchange.
- There is equitable distribution of income; this is done according to the contributions and needs of the citizens.
- There is no competition because the state focuses on only necessities, thereby reducing the choices for the individuals in the society.

Merits & Demerits of Socialism

Merits of Socialism

- Social justice is assured.
- Greater economic efficiency.
- It encourages income equality.
- Absence of monopolistic practices.
- Equitable distribution of wealth and income.
- There is minimal exploitation and class struggles.
- Production is based on needs, thereby reducing waste.
- Decision-making is fast since resources and planning are centralized.

Demerits of Socialism

- It discourages competition.
- Socialism expands bureaucracy.
- There is no suitable basis for cost calculation.

- Too much power is concentrated in the state.
- Loss of consumer sovereignty and economic freedom.
- Imperfections in planning can lead to dissatisfaction on a large scale.

Meaning & Features of Capitalism

Capitalism can be defined as an economic system in which the means of production, distribution and exchange of goods and services are in the hands of individuals. It is an economic system where the means of production, distribution and exchange of goods and services are handled by private individuals. Capitalism is a system of economic organization in which free enterprise, competition and private ownership of property generally prevail. It requires a free market economy to succeed. The main focus of economic activities in capitalism is profit-making.

The bourgeoisie is the rich capitalists that own large business organizations and control political power. The types of the bourgeoisie are:

National Bourgeoisie:- They are people that become wealthy through hard work.

Comprador Bourgeoisie:- They are people that make wealth through fraud, money laundering, drug trafficking, etc.

Petit Bourgeoisie:- They are emerging wealthy persons.

The proletariat is the working class persons who earn their livelihood by selling their labour for wage or salary. Apart from the proletariat, there is a set of people known as the "lumpenproletariat" who are the unemployed or underemployed people in the society. They are usually at risk in the society.

Features of Capitalism

- It operates a free market economy.
- It leads to monopolistic tendencies.
- Freedom of enterprise and occupation.
- There is no limit to ownership of property.

- There is competition and economic rivalry.
- The adoption of liberal democratic principles.
- Minimal government interference and regulation.
- It makes for specialization in various occupations.
- Profit maximization is the driving force behind capitalism.
- Consumer sovereignty/consumer preference is guaranteed.
- There is competition among producers and sellers of commodities.
- There is a class conflict between the proletariat and the bourgeoisie.
- There is private ownership and control of the means of production, distribution and exchange.

Merits & Demerits of Capitalism

Merits of Capitalism

- It promotes hard work.
- It leads to specialization.
- It encourages healthy competition.
- It encourages consumer sovereignty.
- It attempts to limit government spending.
- Optimum utilization of available resources.
- Efficient production of goods and services.
- It encourages private ownership of property.
- It creates room for the effective use of talent.
- It encourages diverse economic development.

- It guarantees maximum freedom of enterprise.
- It encourages numerous inventions and innovations.
- It leads to a higher rate of capital formation and more economic growth.
- It brings about an increase in the quality of goods and services produced.

Demerits of Capitalism

- It may lead to job insecurity.
- Capitalist economy is usually unstable.
- It may threaten the sovereignty of a state.
- It heightens industrial actions such as strikes.
- There is an exploitation of labour by the capitalist.
- Inequality in the distribution of wealth and income.
- Class struggle is inevitable in a capitalist economy.
- It heightens unemployment and underemployment.
- It encourages the exploitation of the poor by the rich.
- There is unhealthy competition in a capitalist economy.
- Social costs are very high because there is job insecurity.
- It may lead to conflict between employers and employees.
- There is a growth of monopolies with their attendant evils.
- The working class does not have adequate social security.
- Profit maximization leads to the exploitation of consumers.
- It does not consider public interest because of the profit motive.
- It leads to slow and unbalanced growth between the rural and urban areas.

Meaning & Features of Totalitarianism

Totalitarianism is a form of government in which the state has absolute power to control everything including all aspects of the citizens' life. In this form of government, the law is seen as a product of the will of the rulers. The citizens are the property of the state, and the mass media and laws are meant to favour the tune of the government. Also, citizens must obey the rulers at the expense of their fundamental human rights.

Features of Totalitarianism

- Absence of the rule of law.
- It is a highly centralised economy.
- People are given little or no attention.
- The government is headed by a dictator.
- It is usually practised in a one-party state.
- The state has total control over everything.
- There is absolute control of the mass media.
- Suppression of individual rights and freedom.
- Existence of a single ideology and philosophy.
- Force and brutality are used to rule the masses.
- It is a reaction against socialism and democracy.
- The government uses force to suppress those who oppose any of its policies.
- There is no limit to the powers of the government because there is no constitution.

Merits & Demerits of Totalitarianism

Merits of Totalitarianism

- Low crime rates.
- It leads to a stable government.
- It provides efficient administration.
- The process of law and decision making is fast.

Demerits of Totalitarianism

- No individual and political freedom.
- Dictators always suppress and oppress people.
- This form of government is headed by a dictator.
- The state has absolute control of the mass media.
- It encourages and spreads war, aggression, hatred, etc.
- Dictatorship regards the state as the end and individuals as the means.
- Use of violence and intimidation to suppress people leads to widespread human rights abuses.
- It is economically inefficient as the economic and political power is concentrated at the centre.
- It kills the initiative among the people and makes them indifferent and disinterested in the affairs of the state.
- Lack of political and economic opportunities as the ruling party or leader controls all aspects of the government and economy.
- Lack of transparency and accountability in the government as the ruling party or leader is not subject to democratic checks and balances.

Meaning & Features of Nazism

Nazism can be defined as a system of government whereby the state has absolute control over the cultural, social, economic and political activities of the people and their fundamental human rights are denied. It is a political ideology which strongly believes that the German race is superior to an individual.

Nazism was a type of totalitarianism practised in Germany under Adolf Hitler between 1933 and 1945. Also, it believes in a "national being based on the unity of blood". The state has full control over the activities and personal liberties of the citizens as the leadership is always right.

Features of Nazism

- Opposition is not allowed.
- Absence of the rule of law.
- Government controls the economy centrally.
- Existence of a single ideology, that is, nazism.
- Fundamental human rights are not respected.
- Use of force and brutality to oppress the people.
- Government owns and controls the mass media.
- Labour unions or pressure groups are prohibited.
- Existence of only one political party e.g. the Nazist Political Party.
- Government owns and controls schools, including tertiary institutions.
- Leaders of the political party are automatically leaders of the government.
- The leader is always right and controls all powers of the government; this makes him dictatorial.

Meaning & Features of Fascism

Fascism is defined as a totalitarian system of government led by a dictator and emphasis aggressive nationalism and racism. It is a form of government headed by a dictator in which the government has total control over all activities in the state and the people are denied personal liberties. Fascism originated in Italy under Benito Mussolini.

Features of Fascism

- It is a one-party system.
- It glorifies wars and violence.
- It has a centralised economy.
- The government is autocratic.
- It is based on racial discrimination.
- The state is superior to individuals.
- The state controls the mass media.
- Existence of official/state ideology.
- Political opposition is not tolerated.
- It opposes socialism and democracy.
- It is based on aggressive nationalism.
- It rejects the law of God and forbids religion.
- It disregards international laws and conventions.
- Existence of secret police and secret trials of citizens.
- The state is hierarchically organized with a leader at the top.
- It is characterized by mass indiscriminate propaganda.

Merits & Demerits of Fascism

Merits of Fascism

- It enhances security.
- It promotes patriotism.
- It ensures peace and order.
- It led to a reduction in crime.
- There is a quick decision making process.
- It brought about an efficient concentration of wealth.

Demerits of Fascism

- Suspension of liberties.
- There is no freedom of speech.
- Disrespect/disregard for human life.
- It paves a way for the abuse of power.
- It can damage the country's economy.
- It leads to disregard for international laws.
- Absence of governing ethics and principles.
- It can widen the divide between the rich and the poor.
- Government own and controls the mass media as a means of propaganda.

Meaning & Forms of Oligarchy

Oligarchy is a form of government where power is exercised by a small and privileged group of people such as wealthy landowners, royalty or powerful military figures. It is a government ruled by a few privileged and powerful people.

Oligarchy is a very selfish type of government because the government is ruling in the interest of the few people in government. The people who hold power in an oligarchy are called oligarchs. It is mostly associated with the term "rule by the few".

Forms of Oligarchy

- 1) Aristocracy:- This is a form of government controlled by a few persons of the highest social rank known as the nobles. The society is ruled by the group considered to be the best in terms of intellectual capability.
- 2) Autocracy:- This is a form of government controlled by a dictator or a group wielding absolute power. It is the absolute rule of a few individuals who consider themselves the best in the society. Autocrats rule with absolute power.
- 3) Diarchy:- This is a form of government controlled by two different authorities e.g. civil and military authorities. Nigeria operated this system during Ibrahim Babangida's administration between 1991 and 1993.
- 4) Gerontocracy:- This is a form of government controlled by a group of old people. Age is the major criterion for determining rulers in gerontocracy. This is done with the expectation that the aged are experienced and more faithful and accountable.
- 5) Theocracy:- This is a form of government controlled by priests or religious leaders. It is believed to have been divinely approved by God so obedience to the ruler is tantamount to obedience to God.
- 6) Plutocracy:- This is a form of government controlled by a few rich and powerful people in the society. The wealthiest class such as the industrialists, financiers and landlords control political power.
- 7) Military Rule:- This is a form of government controlled by men in khaki uniforms called soldiers. They seize power from the civilians through force.

Features, Merits & Demerits of Oligarchy

Features of Oligarchy

1. It is a tyrannical rule.
2. There is no rule of law.
3. The system favours the rich at the expense of the poor.
4. It is a government steered by the minority over the majority.
5. It may take various forms such as theocracy, aristocracy, etc.
6. Power is concentrated in the hands of a few rich or influential people.
7. Wealth and nobleness are the main criteria for attaining political offices.

Merits of Oligarchy

1. It reduces societal pressures.
2. It facilitates quick decision making.
3. It encourages a conservative approach.
4. It consolidates power with those who have expertise.
5. It provides leadership in a situation where the masses are virtually disorganized.
6. It allows the best talent in the society to be used for the realization of the aims and objectives of the state.

Demerits of Oligarchy

1. It is undemocratic.
2. It leads to political exclusion.
3. The leaders usually act in their own interest.
4. It encourages income inequality (economic dominance).

5. Decisions are made by a small group of people with power.
6. It is unable to understand and appreciate the problems of the poor who are usually in the majority.

Aristocracy

Aristocracy is a form of government that puts the power in the hands of a small, privileged ruling class. They usually have a specific honorary title such as Dukem, Duchess, Baron, Baroness, etc. The concept of aristocracy evolved in Ancient Greece. It is mostly associated with the term "rule of the best".

Features of Aristocracy

1. Aristocrats enjoy economic and social influence.
2. Decisions are made by the privileged ruling class.
3. The government is dominated by the rich or noble.
4. Power resides only in the hands of the few (aristocrats).

Merits of Aristocracy

1. It is a rule of the wise.
2. It is moderate and conservative.
3. It prevents political power from residing in one person.
4. Aristocrates help to sustain political stability and continuity.

Demerits of Aristocracy

1. There is a higher chance of rebellion and racism.
2. It depends primarily on the exploitation of the masses.
3. Majority of the people are excluded from governors in aristocracies.
4. Aristocracy tends to pass power through heredity rather than merit.

5. Political power is not shared by all people as it is done in a democratic system; it is concentrated in the hands of a few.

Autocracy

Autocracy is a form of government in which supreme power is controlled by only one ruler or authority. The word autocracy is derived from the Greek words "Auto" which means "self" and "Kratos" which means "power".

Features of Autocracy

1. There is no opposition.
2. Political rights do not exist.
3. There are no free elections.
4. There is no freedom of expression.
5. Work-method is dictated by the leader.
6. The people have no authority in decision making.
7. Supreme power resides in the hands of one person.
8. Violence and repression are used to put an end to any dissent.

Merits of Autocracy

1. It improves productivity.
2. There is strong leadership.
3. There is faster decision making.

Demerits of Autocracy

1. There is no room for opposition.
2. It births a dictatorial government.
3. There may be a lack of accountability.
4. Absolute power is concentrated on one person.

5. Succession of power is within the family of the autocratic leader.

Meaning, Types & Features of Democracy

Democracy can be defined as a government of the people, by the people and for the people. It is a system of government in which the people are involved in making decisions about their affairs, typically by voting to elect representatives to a parliament or similar assembly.

Major Types of Democracy

1) Direct or Classical Democracy:- This is a type of democracy in which everybody participates directly in the decision making process. That is, all citizens take part in the making and implementation of laws in the state. It is suitable for very small states with few populations. Athens in Greek practised direct democracy.

2) Indirect or Representative Democracy:- This is a type of democracy in which the people elect representatives and leaders who make decisions on their behalf through periodic, free and fair elections. Nigeria practices this type of democracy.

Features of a Democratic State

1. Popular sovereignty.
2. Checks and balances.
3. Separation of powers.
4. Free and fair elections.
5. Respect for rule of law.
6. Periodic/regular elections.
7. There is political education.
8. Existence of a constitution.
9. It is based on a majority rule.
10. Tolerance of opposition views.

11. Protection of minority interest.
12. Independent/free mass media.
13. It operates a multi-party system.
14. Independent electoral commission.
15. Existence of independent judiciary.
16. Universal adult suffrage is practised.
17. Respect for fundamental human rights.
18. Responsive and responsible government.
19. Fixed tenure of office for political office holders.
20. Existence of Public Complaints Commission/ombudsman.
21. Operation of effective civil society organizations/pressure groups.
22. Operation of effective administration writs e.g. habeas corpus, certiorari, etc.

Merits & Demerits of Democracy

Merits of Democracy

- Legitimacy.
- Political stability.
- Self-government.
- Equal opportunity.
- Popular sovereignty.
- Equality and fraternity.
- Operation of the rule of law.
- It promotes political participation.

- There is an orderly transfer of power.
- Responsible and accountable government.
- Fundamental human rights are guaranteed.
- It promotes the political accountability of rulers.
- It guarantees the supremacy of the constitution.
- Sense of responsibility and cooperation among the people.
- It enhances rapid socio-economic and political development in the state.
- It offers the citizens alternatives in terms of the choice of leaders to elect or political parties to join.
- The rights and views of the minority are respected because there is tolerance of opposition and negative criticism.
- It prevents arbitrary use of power/dictatorship since rule of law, political equality, checks and balances and constitutionalism exist.

Demerits of Democracy

- It breeds corruption.
- It is expensive to operate.
- Delay in the decision-making process.
- Lack of educated and experienced voters.
- Incompetent people may be in the government.
- The representatives elected may be representing their own interests.
- It leads to the emotional manipulation of the masses by political leaders.
- The existence of many political parties may promote instability in the government.

- Poor political enlightenment/education due to mass propaganda will make voters make wrong judgements.
- Election violence such as murder, vandalization of properties, thuggery, etc. especially in developing nations.

Conditions Necessary for a Successful Operation of Democracy

1. Judicial independence.
2. Tolerance of opposition.
3. Equal opportunities for all.
4. Respect for the rule of law.
5. Supremacy of the constitution.
6. Principles underlining democracy should be adhered to.
7. The country should allow the participation of different political parties.
8. Citizens should be allowed to participate in the government of the country.
9. People should be allowed to elect their leaders through free and fair elections.

Unitary System of Government I

A unitary system of government is a system of government in which all powers and authorities of the state are concentrated in a central government. In a unitary system, all governmental powers are concentrated in the hands of a single authority or central government. The central government has all the constitutional powers, assumes supremacy over all other subordinate units and makes laws for the entire state. The administrative divisions exercise only powers that the central government has delegated to them. Powers are not shared between the central government and other component units.

The Gambia, Ethiopia, Cameroun, New Zealand, Ghana, Togo, Sierra Leone, Britain, France, Sweden, Italy, Belgium, etc. operate a unitary system of government.

Features of Unitary System of Government

1. Adoption of a unitary constitution.
2. There is parliamentary supremacy.
3. There is no constitutional division of power.
4. Existence of a single uniform administration.
5. Flexibility of the constitution and administration.
6. The constitution is usually unwritten and flexible.
7. All the powers are vested in the central government.
8. Local governments exist at the will of the central government.
9. The constitution of a unitary state can be written or unwritten.
10. The central government is strong; it creates other units of government.
11. The central government delegates specific power to other tiers of government.

Reasons for the Adoption of a Unitary System of Government

1. Limited human and natural resources.
2. Relatively homogenous nature of a state.
3. When the people in the state have identical political culture and history.
4. The cost-effectiveness of the unitary system makes states adopt this system.
5. When the state has a desire for the preservation of national unity, identity or values.
6. Small geographical territories and populations may adopt this system of government.
7. When there is no distinct minority group that may claim to be marginalized or have ethnic inequalities.

Unitary System of Government II

Merits of Unitary System of Government

- It promotes national unity.
- It is suitable for small states.
- It promotes political stability.
- It is not expensive to operate.
- It operates a flexible constitution.
- It facilitates quick decision making.
- It promotes cohesive administration.
- The constitution can be easily amended.
- There is less complexity in the legal system.
- It promotes an even and uniform development.
- Unitary governments are usually cheaper to run.
- Unitarian governments work to create a system of unity.
- The government structure can respond quickly to emergency situations
- It creates less confusion over the governing process for the average citizen.
- Stronger and more stable government as citizens show loyalty to one central government.

Demerits of Unitary System of Government

- It is unsuitable for big states.
- Slow rate of economic development.
- The government is far from the people.

- Unitary governments foster manipulation.
- It is a structure that can ignore local needs.
- It does not encourage wider representation.
- It leads to domination of the minority groups.
- Slow national response in localized emergencies.
- The central government is excessively powerful and overburdened.
- It encourages the abuse of power/dictatorship since power is concentrated on the central government.

Unitary State

A unitary state is a state in which the total government power is concentrated in a single authority located at the centre.

Factors that Determine the Creation of a Unitary State

1. Homogenous population.
2. Small population size of the country.
3. Limited natural and human resources.
4. Small geographical size of the country.
5. The need for national unity and cohesion.
6. Common historical background of the people.
7. The desire of the people/leadership at the time of the creation of the state.

Unitary Constitution

Features of a Unitary Constitution

1. The amendment provisions are flexible.
2. Other authorities derive their powers from the central government.

3. It concentrates governmental powers in a single central government or legislature.
4. States and local governments are made subordinate to the central government by the constitution.

Conditions that can Necessitate the Adoption of a Unitary Constitution in a Country

- If the size of the country is small.
- It is simple and cheap to operate.
- Absence of serious fear of domination.
- If the population of the country is small.
- Common colonial/historical experience.
- Desire to achieve uniform development.
- Shortage of human and material resources.
- When there is a common language and culture in the country.
- Effect or influence of successful unitary constitution in other countries.
- Absence of marked economic inequality among the people in the country.
- Absence or minimal ethnic and tribal differences among the people in the country.
- If there are no marked differences in the historical origin of the people to make up the country.

Federal System of Government I

A federal system of government or federalism is one in which there is a constitutional division of power among the three tiers of government (federal, state and local government). In a federal system, the federal or central authority

represents the whole while the state and local government are authorized with powers of legislation and administration within its constitutional limits. The USA, Canada, Germany, Switzerland, Australia, India, Nigeria, South Africa and Brazil practice federalism.

In a federal system of government, the power is shared among the different levels of government into exclusive, concurrent and residual lists.

- Exclusive List:- This contains roles, powers and functions legislated upon by the central government such as defence, foreign affairs, customs, currency, etc.
- Concurrent List:- This contains roles, powers and functions meant to be performed by both the central and component units or state government such as education, economics, commerce, health, transportation, trade, agriculture, etc. The federating units and the central government can legislate on the items on this list.
- Residual List:- This contains a list of items legislated upon by the state and local government such as land, licensing of liquor and vehicles, customs and traditions, etc.

Features of the Federal System of Government/Federalism

- The constitution is supreme.
- A federal state is heterogeneous and geographically large.
- The constitution of a federal state is often written and rigid.
- Every interest group is recognized and represented in federalism.
- There is a constitutional division of power between the tiers of government.
- The central, state and local governments derive their powers from the constitution.
- There is duplication of the organs of government, civil service, public service and judiciary.
- Existence of bicameral legislature at the centre and unicameral legislature at the state and local levels.

- The constitution usually provides a formula for revenue allocation and sharing among the component units.
- Existence of a supreme court that interprets the constitution and decides on any conflict between the centre and constituent units.
- The constitution separates the functions and powers among the three (3) organs of government (executive, legislature and judiciary).

Federal System of Government II

Factors that give rise to the Adoption of a Federal System of Government/Federalism

- Ethnic diversity.
- Desire for a union.
- Fear of domination.
- Availability of resources.
- Preservation of local autonomy.
- Absence of marked inequalities.
- Geographical nearness/contiguity.
- The size of the country/population.
- Need for a common defence system.
- Common historical/colonial experience.

Reasons for Adopting the Federal System of Government/Federalism

- 1) Security Consideration:- A group of small states may unite to form a federal state for fear of an enemy.
- 2) Desire for Union:- A state may adopt the federal system of government if the federating units solicit for a union.

- 3) Availability of Human Resources:- A state with abundant human resources can adopt a federal system of government.
- 4) Fear of External Aggression:- Federating states may desire to come together to be strong enough to ward off external aggression.
- 5) Economic Reason:- A group of autonomous states may adopt federalism in order to pool their resources together for mutual benefit.
- 6) Historical Reason:- A state may adopt a federal system of government due to historical antecedents like colonialism, past trade ties, etc.
- 7) Fear of Domination:- The fear of domination of minority ethnic groups by majority groups is a reason for adopting the federal system of government.
- 8) Heterogeneity:- The existence of marked inequalities, diverse populations and disparities in languages, religion, historical background and cultures is a reason for adopting a federal system of government.
- 9) Size of the State:- The size of the state can act as a determinant for adopting the federal system of government. States with a large geographical territory and population like India, Nigeria and the USA may adopt federalism.
- 10) Availability of Adequate Natural Resources:- A state with large natural resources may adopt the federal system of government. Such a state would have funds to run duplication of offices as the federal system of government requires.
- 11) Geographical Proximity, Nearness or Contiguity:- The desirability of states to form a federation depends on their geographical location. States that are not separated by natural barriers like valleys, oceans, mountains, etc. may adopt federalism.

Federal System of Government III

Merits of Federal System of Government/Federalism

- It promotes political stability.
- It promotes unity in diversity.

- It allays the fear of domination.
- It guarantees fundamental human rights.
- It encourages local participation in politics.
- It gives adequate protection to the minority.
- It brings the government nearer to the people.
- It reduces the burden/workload of the central government.
- It allows the component units to develop at their own pace.
- Government policies can be easily adapted to meet local needs.
- It encourages healthy competition among the component units.
- It ensures formidable defence against internal and external attacks.
- It guarantees a greater degree of autonomy to the component units.
- It creates job opportunities as a result of the duplication of institutions.
- The adoption of a rigid and written constitution guides against arbitrariness in governance.
- It prevents the emergence of a dictator as powers are not concentrated in a single authority.
- It encourages even, rapid socio-economic development among the various constituent units.
- It allows for the experimentation of projects and policies at different levels before adoption at the centre.
- It enables the pooling together of both human and material resources for the development of the federation.
- The existence of a constitutional/supreme court provides a neutral platform for the resolution of constitutional conflicts/disputes.

Demerits of the Federal System of Government/Federalism

- It is very expensive to operate.
- It encourages uneven development.
- It can create opposition competition.
- Constitutional amendment is difficult.
- It can be structured to benefit only the rich.
- There is unhealthy rivalry among the ethnic groups.
- It is inefficient because of the diversity of law and administration.
- Weakness of conducting a reliable and acceptable census that can be trusted.
- There is a possibility of conflict or unhealthy competition among the tiers of government.
- Decision-making process is slow due to groups that are needed to be consulted before decisions are made.

Shortcomings of the Federal System of Government/Federalism

- It is expensive to operate and maintain.
- It leads to unequal/uneven development.
- Problem of revenue sharing and allocation.
- Marked difficulties in attaining national unity/oneness.
- Unnecessary duplication of offices/institutions of government.
- It leads to dual loyalty as citizens tend to have loyalty to multiple governments.
- The fear of domination among the various ethnic groups leads to the threat of secession.

- It leads to mutual suspicion, mistrust, misgivings and rivalry among the component units.
- There is difficulty in amending the constitution as a result of the rigid nature of federal constitutions.
- Difficulty in taking quick decisions as a result of the consultations required before decisions are taken.
- It is prone to legal/judicial friction or tussles over areas of constitutional jurisdiction and competence.
- Interstate frictions/conflicts as a result of differences in opinion among the component states/units into which powers are shared.

Federal State

A federal state is a state that has a division of power between the different levels of government.

Features of a Federal State

1. It is heterogeneous.
2. It is geographically large.
3. Formal division of powers.
4. Denial of the right to secede.
5. There is a bicameral legislature.
6. The constitution is written and rigid.
7. Existence of a federal supreme court.
8. Supremacy of the federal constitution.
9. Dual allegiance of citizens sharing formula.
10. Existence of two levels of government i.e. federal and component units.

Confederal System of Government I

A Confederal system of government is a form of government in which sovereign states come together as autonomous bodies to form a loose political union, in which the central government is subordinate to the component government. It is a loose political union accommodating independent sovereign states with the intention of coming together to cooperate in some vital areas like sports, military and trade with each state retaining its sovereignty.

A government is said to be confederal when the constitution allocates much power to the component at the expense of the central government, that is, the centre is weak while the confederating units are strong. It is known as a loose federation.

Senegambia is an example of a confederal state made up of the sovereign Senegal and Gambia. The Confederation of African Football (CAF) and the North Atlantic Treaty Organization (NATO) are examples of confederation.

Features of the Confederal System of Government

- It has a weak centre or central government.
- Each confederating unit retains its identity.
- Secession of any component unit is allowed.
- The confederating units are nearly autonomous.
- It allows the component units to develop at their own pace.
- Exclusive legislative lists are reserved for the confederating units.
- Citizens' allegiance is more to the component units than to the confederacy.
- The component sovereign states are more powerful than the central government.
- The confederacy depends on financial contributions from the confederating units.
- Individual units cooperate on specific areas such as foreign affairs, currency, defence, etc.

Confederal System of Government II

Merits of Confederal System of Government

- It promotes unity in diversity.
- Formation of stronger states.
- The power is decentralized among the sovereign states.
- It allays the fears of denomination or marginalization of any unit.
- There is no controversy over where the loyalty of the citizens lies.
- It encourages cooperation and healthy competition among confederating units.
- The needs of the people are addressed better as they have the attention of the ruling body.
- It leads to rapid development as the units compete to make the lives of their citizens better.
- It protects the individuality and identity of the component units as they cooperate to achieve their goal.
- It minimizes political conflicts since regional units are allowed to follow their separate developmental agenda.
- A confederating unit that desires to break away from the confederating units can easily do so as the constitution permits that.

Demerits of the Confederal System of Government

- The central government do not have authority over taxation.
- There is uneven development as units develop at their own pace.
- It is fragile and can easily disintegrate/break away, causing political instability.

- It may be difficult to promote national unity as each unit retain its own identity.
- There is a weak central government which cannot control the confederating units.
- The authority within each state as a separate unit would encourage a struggle for political power.
- Citizens pay more allegiance to the units than to the centre, hence there may be an absence of patriotism.
- It encourages disunity since component units retain a considerable amount of power and take care of their own foreign policy.
- The constitution of a confederation is flexible and can be amended without getting the support of all the units and this may cause friction.

Presidential System of Government I

A presidential system of government is a political arrangement where all executive powers within the state, both ceremonial and real, are vested in one person known as the President. In the presidential system of government, the President is both the Head of State and the Head of Government. He performs ceremonial functions and exercises executive powers. In this system, the three arms of government (legislature, executive and judiciary) are constitutionally independent of each other.

Examples of countries that operate the presidential system of government are the USA, Ghana, Nigeria, Spain, South Africa, the Philippines, etc.

Features of the Presidential System of Government

- Supremacy of the constitution.
- The President is the Head of State and Government.
- The principle of checks and balances is applied in this system.
- The President is the Commander-in-Chief of the Armed Forces.

- The President and ministers are not members of the legislature.
- The system does not recognize an official opposition party in the House.
- There is a bicameral legislature and bills can be introduced from any of the chambers.
- The President appoints members of his executive anywhere within and outside his own political party.
- The President is elected for a fixed term and can only be removed through impeachment by the legislature.
- The President is directly elected by the electorate nationwide because he has the whole country as his constituency.
- The members of the executives are individually responsible to the President and he can remove any of them from his cabinet.
- There is a separation of powers in terms of membership and composition; members of the executive are not members of the legislature.
- The President has a wide range of influence in the appointments of key officials of the state e.g. ambassadors/high commissioners, key command positions in the uniformed services, etc.
- The appointment of the cabinet members requires the confirmation of the Upper House of the Legislature (Senate) and must satisfy certain criteria e.g. age, religion, gender, qualification, geographical spread, etc.

Presidential System of Government II

Functions of the President in the Presidential System of Government

- He performs ceremonial functions.
- He exercises the prerogative of mercy.
- He approves the bills passed by the legislature.
- He is the Head of State and Head of government.

- He is the Commander-in-Chief of the armed forces.
- He addresses a joint session of the national assembly.
- He initiates government policies and implements them.
- He represents the state in other countries and in international organizations.
- He gives awards/honours to deserving members of his state and decorates them.
- He negotiates and signs treaties or international agreements with other countries.
- He presents an annual budget speech to the joint session of the national assembly.
- He can declare a state of emergency, subject to the approval of the national assembly.
- He maintains law and order in the state through the law enforcement agencies under his control.
- He initiates appropriation bills and other bills for discussion and approval in the national assembly.
- He receives dignitaries from other states e.g. the Heads of State and Governments of other countries or their representatives.
- He appoints ministers and other government officials subject to the approval of the Senate and dismisses ministers and erring officials.

Checks & Limitations on the Powers of the Executive President

- The national assembly must approve the list of members of his cabinet.
- The supreme court can declare any unconstitutional action of the president null and void.
- The President can be impeached by the national assembly, especially for a breach of the constitution.

- The President's term of office is limited constitutionally and he can be voted out of office at the end of his tenure.
- If the President refuses to assent to a bill, the national assembly can thereafter pass it into law by a two-thirds majority

Presidential System of Government III

Merits of the Presidential System of Government

- It is democratic in nature.
- It facilitates effective leadership.
- Individual ministers are accountable for their deeds and misdeeds.
- There is stability in government since the President is elected for a fixed term.
- The President is the symbol of unity since the whole country is his constituency.
- The principle of judicial review promotes strict adherence to rule of law and constitutionalism.
- It promotes political stability as one person is both the Head and State and Head of Government.
- The fusion of the positions of the Head of State and Head of Government removes conflicts between the two.
- It promotes wider political participation as more people participate in elections or processes of public decision-making.
- Since the President can appoint his ministers from anywhere, he ensures that the best and most credible people are appointed.
- The entire country is the president's constituency so he is responsible and accountable to the people and not only the legislature.

- Checks and balances, the separation of power among the three arms of government and the supremacy of the constitution help to prevent the misuse of power.
- The principle of individual responsibility makes it possible to easily identify who has responsibilities for certain functions and who is to be blamed for lapses and inactions.

Demerits of the Presidential System of Government

- It can degenerate into a dictatorship.
- Some bills may be delayed intentionally by the President.
- There is a strained relationship between the organs of government.
- It can lead to corrupt practices such as lobbying, bribery and corruption.
- The President is free to make major policy decisions without public support.
- It is very expensive to operate in terms of the finance and personnel required.
- The fixed term of office of the President can make him unresponsive to public opinion.
- It is difficult to control the President because he cannot be easily removed from office.
- The President can misuse or abuse the veto power he exercises in the passage of bills.
- The impeachment process may be difficult, allowing a bad president to remain in power.
- Government action may be slowed down because of constant friction between the executive and legislature.
- The President may be unresponsive to public demands and opinion as he has a fixed term of office, most especially when he is in the last term of his tenure.

- The power of the President to appoint anyone as a minister can encourage him to appoint his relatives and close friends who may not be competent to perform the job.

Parliamentary System of Government I

The parliamentary system of government is a system of government in which the Head of State is different from the Head of Government. The Head of State is separated from the Head of Government in terms of personality and functions. While the Head of State performs ceremonial functions, the Head of Government performs executive functions. The Head of State may be called the queen, emperor, general or president while the Head of Government is the Prime Minister.

The parliamentary system is also called the cabinet system or parliamentarianism. Examples of countries operating this system are Britain, Kenya, Zambia, Canada, etc. Nigeria practised the parliamentary system between 1960 and 1966.

Functions of the Cabinet in a Parliamentary System of Government

The functions of a cabinet vary; in some countries, it is a collegial decision-making body with collective responsibility while in others it may function either as a purely advisory body or as an assisting institution to a decision-making Head of State or Head of Government. In some countries, the cabinet is called the Council of Ministries, Government Council, Federal Council (in Switzerland), Inner Council or High Council.

In some countries, particularly those that use the parliamentary system (e.g. the UK), the cabinet collectively decides the government direction, especially in regard to legislation. In countries with the presidential system (e.g. the United States), the Cabinet does not function as a collective legislative influence, rather its primary role is as an official advisory council to the Head of Government.

In general, the cabinet has a collective responsibility also known as collective ministerial responsibility.

Parliamentary System of Government II

Features of a Parliamentary System

- There is strong party discipline.
- Existence of bicephalous executive.
- Existence of parliamentary supremacy.
- Opposition party is officially recognized.
- Fusion of the executive and legislative powers.
- Executive does not have a fixed tenure of office.
- Existence of the principle of collective responsibility.
- The Head of Government is appointed by the Head of State.
- The Head of State is different from the Head of Government.
- The Prime Minister appoints ministers from within the parliament.
- There is a collective responsibility of the cabinet to the legislature.
- The use of vote "no confidence" is popular in a parliamentary system.
- In a bicameral parliament, all bills are first introduced in the second chamber.
- Coalition of government is popular in a parliamentary system of government.
- The Head of State has the power to dissolve a parliament and call for fresh elections.
- The Prime Minister and key ministers are directly responsible to the legislature for any policy initiated by them.

Powers/Functions of the Head of State in the Parliamentary System

- He signs bills into law.
- He exercises prerogative mercy.

- He serves as the symbol of unity.
- He performs ceremonial functions.
- He has the power to dissolve the life of the parliament.
- He represents the state outside the country and in international organizations.
- He has the power after an election to call on the majority leader in the parliament to form the government.

Powers/Functions of the Head of Government (Prime Minister) in the Parliamentary System

- He can reshuffle the cabinet.
- He exercises executive powers.
- He presides over cabinet meetings.
- He conducts international relations.
- He appoints top government functionaries.
- He dismisses ministers when the need arises.
- He coordinates the activities of the government.
- He initiates executive bills and government policies.
- He serves as a link between the Head of State and the cabinet.
- He can recommend individuals to be awarded national honours.
- He advises the Head of State on the dissolution of the parliament.
- He can recommend the deployment and retirement of the armed forces.
- He represents his country in other countries and international organizations.
- He nominates ministers from the parliament and allocates portfolios to them.

- The activities of different departments are coordinated by the Prime Minister and his cabinet.
- He exercises executive and legislative powers as he is a member of the cabinet and legislature.
- Members of his cabinet are drawn or nominated from his party members in parliament who are also lawmakers.
- He is the leader of the ruling party and the parliament, that is, he is the chairman at both the executive and cabinet meetings.

Parliamentary System of Government III

Merits of the Parliamentary System

- It enhances party discipline.
- It encourages team spirit among the cabinet ministers.
- It is less expensive than the presidential system of government.
- The decision-making process is fast since there is a fusion of power.
- The official opposition serves as an effective watchdog on the government.
- It encourages a great working relationship between the legislature and the executive.
- It prevents the emergence of a dictator because of a vote of no confidence that can be passed on to the cabinet.
- It promotes political stability by eliminating constant disagreement and conflict between the two arms of government.
- It promotes accountability and responsibility of the government to the people through the inherent checks principles therein e.g. official opposition recognition and collective responsibility.

Demerits of the Parliamentary System

- The fusion of power may lead to dictatorship.
- It is often unstable when a coalition government is formed.
- Party discipline kills the individual initiative of the ministers and the legislature.
- The Prime Minister may become a dictator due to the enormous power vested in him.
- There may be friction and unhealthy rivalry between the Head of State and the Head of Government.
- It is difficult to blame any minister who has failed to deliver due to the principle of collective responsibility.
- The principle of collective responsibility makes it difficult to allocate praise or blames on a particular minister.
- The life of the cabinet is not secure since the legislature can dismiss the entire cabinet with a vote of no confidence.
- The Prime Minister is not directly responsible to the people, rather he is responsible to the legislature that appointed him.
- It is not very democratic since the Prime Minister is not elected by the people but rather by the majority party in the parliament.
- Best-qualified candidates may not be appointed as ministers since the ministers are appointed strictly from the ruling party in the parliament.
- The cabinet may not be committed, dedicated, focused and accountable because of the existence of collective responsibility which cannot hold a minister individually responsible for lapses and inactions of government

Collective Responsibility

Collective responsibility is a constitutional convention in governments using the Westminster System that members of the cabinet must publicly support all governmental decisions made in the cabinet, even if they do not privately agree with them. It is one of the principles in a parliamentary system of government which states that all members of the cabinet are accountable to the legislature for executive actions and policies.

The cabinet speaks with one voice and stands/falls together. A minister cannot oppose government policy, otherwise, the minister will resign. If a vote of no confidence is passed in parliament, the government is responsible collectively, therefore the entire government resigns. As a result of this, a new government will be formed or the parliament will dissolve and a general election will be called.

Merits of Collective Responsibility

- It promotes political stability.
- It encourages efficiency due to collective action.
- It does not encourage the shifting of responsibility or blame by the ministers.
- It makes the executive indirectly answerable to the people who are represented in the parliament by their own elected representative.

Presidential vs Parliamentary System of Government

1. In a presidential system, party discipline is weak while in the parliamentary system, party discipline is rigidly enforced.
2. There is a separation of powers in the presidential system while there is a fusion of powers in the parliamentary system.
3. There is constitutional supremacy in the presidential system while there is parliamentary supremacy in the parliamentary system.
4. In a presidential system, there is a fixed tenure for the government but in a parliamentary system, there is flexibility in the tenure of the government.

5. In a presidential system of government, the President can veto bills passed by the legislature while in the parliamentary system, there is no such veto.
6. In a presidential system, the President is directly elected while in the parliamentary system, the Prime Minister is appointed from the majority party in parliament.
7. In a presidential system, the Head of State is also the Head of Government while in a parliamentary system, the Head of State is different from the Head of Government.
8. In the presidential system, the President chooses his ministers from outside the parliament while in the parliamentary system, the ministers are chosen from the parliament.
9. In a presidential system, ministers are individually accountable to the president but in the parliamentary system, the ministers are collectively responsible to the parliament.
10. In a presidential system, the role of the opposition is not constitutionally determined but in the parliamentary system, the constitution provides a role for the opposition in parliament.
11. In a presidential system, the President can be removed by impeachment while in the parliamentary system, the Prime Minister can be removed through a vote of no confidence.

Monarchical Government I

A monarchical system of government is a form of government headed by an individual who may be a king, queen or emperor. Monarchy is a system of government in which a group, usually a family, called the dynasty, embodies the country's national identity and one of its members, called the monarch, exercises the role of sovereignty. The king, queen or monarch is the sole hereditary head of state. The actual power of the monarch may vary from purely symbolic (crowned republic), partial and restricted (constitutional monarchy), completely autocratic (absolute monarchy), to limited monarchy where the monarch has only ceremonial

powers. Britain, Saudi Arabia, Morocco, Denmark, Iran and Sweden practise the monarchical system of government.

Forms of Monarchy

The two main forms or types of monarchy are constitutional and absolute monarchs.

1) Constitutional Monarch:- This is a form of monarchy in which the Head of State who is either a king, queen or emperor has their powers regulated by the constitution. The monarch promulgates only those laws which are agreed upon by the elected parliament. Also, the monarch performs symbolic and ceremonial functions but the government is run on behalf of the monarch. Constitutional monarchy is practised in Britain and Morocco.

2) Absolute Monarch:- This is a form of monarchy in which there is no established constitutional authority to regulate either the king, queen or emperor's power. The monarch exercises unlimited powers over the state. Also, the monarch rules as both the Head of State and Head of Government. Absolute monarchy is practised in Saudi Arabia and Iran.

Other unpopular forms of monarchy are:

1) Dependent Monarchy: This is a form of monarchy where the monarchs are dependent on other powers.

2) Succession Monarchy: This is a form of monarchy where there are rules for succession or selection. The rules for the selection of monarchs vary from country to country. In constitutional monarchies, the rule of succession is generally embodied in a law passed by a representative body such as a parliament.

3) Hereditary Monarchy: This is a form of monarchy where the position of a monarch is inherited according to a statutory or customary order. The succession is usually within one royal family tracing its origin through a historical dynasty or bloodline.

4) Elective Monarchy: This is a form of monarchy where the monarchs are elected or appointed by an electoral college for life or a defined period. There is no

popular vote involved in elective monarchy as the elective body usually consists of a small number of eligible people.

Monarchical Government II

Features of Monarchical Government/Monarchy

- The monarch acquires his powers through hereditary.
- A monarch could be despotic and not ready to change.
- It is an age-long form of government based on cultural practices.
- All government power is concentrated in the hands of the monarch.
- The monarch is the head of state; the government of the state is in his hands.
- The monarch could be a despotic ruler with all the powers concentrated in his hands.
- The monarch is selected by the kingmakers among the members of the ruling families.
- The monarch performs mainly ceremonial and symbolic functions in a constitutional monarchy.
- Political power is shared between elected officials and the monarch in a constitutional monarchy.
- Countries practising a monarchical system of government are usually characterized by religious homogeneity.
- There is no separation of powers as the executive, legislative and in some cases judicial powers are all concentrated in the reigning monarch.

Monarchical Government III

Merits of Monarchical Government/Monarchy

- It promotes national unity.
- It is less expensive to operate.

- It allows non-partisan leadership.
- It encourages respect for the rulers.
- It lessens cases of corrupt practices.
- It helps to harmonize different interest groups.
- It brings about political and leadership stability.
- It ensures stability in both succession and government.
- The monarch preserves the customs and traditions of the people.
- It offers more savings for the government since there is an absence of elections.
- Quick decisions can be taken to deal with emergency situations under a monarchical system of government.
- The subjects willingly obey the monarch because that has been part and parcel of their customs and traditions.
- There is unity and orderliness in a monarchical government because the supreme power is vested in a single authority.

Demerits of Monarchical Government/Monarchy

- It can degenerate into tyranny.
- It does not allow democratic legitimacy.
- It leads to unequal distribution of wealth.
- The monarch can easily become a dictator.
- It lacks democratic accountability and liability.
- Its structure is very difficult to change internally.
- It invests much power and fame in a single individual.

- It does not accept the principle of popular sovereignty.
- It is an authoritarian and despotic form of government.
- Competent citizens who are not from the royal family may be left out of the government.
- A monarch could be despotic to keep the people weak so that they may be unable to resist him.
- In this modern time, more people agitate for greater political participation, so monarchy is seriously threatened.
- In an absolute monarchy, the monarch cannot be questioned as he is not accountable or responsible to anyone.
- In a constitutional monarchy, the power of the monarch is reduced as they share political power with elected officials

Republican Government I

Republican government or republicanism is a system that has the president as the Head of State who is elected by the people and has a fixed term of office. It is a system of government in which the sovereignty of the state resides in the people. The political authority comes from the people and the country is considered a public matter and not the private concern or property of the rulers.

The term republicanism is derived from the word republic. A republic is a country that is governed by elected representatives of the people and led by a president who takes charge of the affairs of a country for a stipulated period of time. Unlike the monarchical system where succession is based on a hereditary, succession is based on elections in the republican government. In some countries, the President as the Head of State performs ceremonial functions but as an executive president, he is both the Head of State and Head of Government.

Examples of republican countries are the United States, Liberia, France, Senegal and Ghana.

Features of Republican Government/Republicanism

- Universal adult suffrage.
- Existence of the rule of law.
- There is a fixed term of office.
- Periodic free and fair elections.
- The leaders are elected periodically.
- Political independence is compulsory.
- There is the independence of the judiciary.
- A republican must be politically independent.
- The lawmakers are entirely elected by the people.
- Fundamental human rights of citizens are guaranteed.
- It is usually characterized by a multi-party democratic system.
- There is a free press and freedom of association and forming of political parties.
- Political leaders can only stay in office for the stipulated term e.g. four or five years.
- The political leaders must be responsive and accountable to the people they are representing.
- There is popular sovereignty as political powers reside with the people who can vote out any bad government.
- The constitution is supreme and both the leaders and followers must strictly adhere to the provision of the constitution.

Republican Government II

Merits of Republican Government/Republicanism

1. It is democratic.
2. It allows greater freedom and prosperity.
3. The leader is not imposed upon the people.
4. There is wider participation in the political process.
5. The rights and liberties of the citizens are protected.
6. Laws made by elected representatives are meant to be fair.

Demerits of Republican Government/Republicanism

1. It is expensive to operate.
2. It works best in small countries.
3. It can lead to mob rule if it is not well-organized.
4. It promotes unnecessary delay in decision-making.
5. There may be emotional manipulation of the masses by politicians.
6. There are many political parties contending for the control of the higher echelons of political power.
7. It is time-consuming as laws made in parliament must pass through certain laid down processes without which they cannot become laws.

Republican vs Monarchical System of Government

The differences between the republican system of government (republicanism) and the monarchical system of government (monarchy) are:

1. Republicanism is democratic while monarchy is autocratic.
2. In republicanism, the Head of State is the President while in monarchy, the Head of State is the Monarch.

3. In republicanism, the principle of the rule of law is strictly adhered to while in monarchy, the rule of law is absent.
4. In republicanism, political sovereignty resides with the people while in monarchy, the right to rule rests with the monarch.
5. In republicanism, there is a fixed term for political office holders including the president while in monarchy, the monarch stays in office till death.
6. In republicanism, all members of the legislature are elected while in monarchy, some legislators are appointed while others inherit membership of the legislature.
7. In republicanism, the constitution limits the powers of the political officeholder while in monarchy, the monarch may exercise unlimited power if it is an absolute monarchy.
8. In republicanism, the attainment of political office is through a free, fair, regular and periodic election while in monarchy, the attainment of office of a monarch is hereditary.
9. In republicanism, there is respect for rules and constitutionalism and guarantee of fundamental human rights while in monarchy, the monarch determines what is the law and the fundamental human rights may be limited.

Meaning of Constitution

A constitution is a whole body of fundamental laws, customs, conventions, principles, rules and regulations according to which a particular country is governed. It is primarily a set of rules, regulations, customs, conventions and principles specifying how a country should be governed, how power is distributed and controlled and the rights of the citizens. Also, it is the basic principles and laws of a nation, state or social group that determine the powers and duties of the government and guarantee certain rights to the people.

A constitution is a body of agreed rules and regulations stating how the powers governing a country are given and how these powers are to be exercised. A constitution defines the various institutions of government, prescribes their

composition, powers and functions and regulates relations between them. It is superior to all other laws.

The constitution of Nigeria is the supreme law of the Federal Republic of Nigeria. Nigeria had a series of constitutions and the current constitution was enacted on May 29 1999, inaugurating the Nigerian Fourth Republic.

Sources of Constitution

Some of the sources of constitutions are:

- 1) Conventions:- These are the portions of the constitution that have not been written down but have been accepted as practices under the constitution over the years. Conventions, political precepts and practices over time form part of the constitution.
- 2) History of the People:- The past political development of the people forms part of the history of the country and this is considered when drafting the constitution of the country.
- 3) Judicial Precedents or Decisions:- These are rulings of the courts that have become part of the constitution. In constitutional cases, especially when a judiciary rules on a matter before it, the decision becomes the new law and it can be used as the basis of another decision in future; mostly when the cases are similar.
- 4) Customs and Traditions:- These are the beliefs, norms and values of the people. They are important in the formulation of the constitution.
- 5) Opinions of Political and Constitutional Writers:- Concepts such as separation of powers, checks and balances, rule of law, socialism, capitalism, feudalism, etc. were proposed by great writers on politics. The writings of Karl Marx, for example, influenced the constitution of the former Union of the Soviet Socialist Republic.
- 6) International Documents:- The provisions of important documents such as the United Nations conventions on human rights form part of the constitution.
- 7) Constitutions of other Countries:- The constitution of other countries can be studied and the best practices can then be incorporated into the new constitution. It

is believed that parts of the 1960 constitution of Ghana were derived from the content of the American, French and British constitutions.

8) Acts of Parliament:- The laws, enactments or bills passed into laws by the parliament or legislative organ of government are sources of the constitution.

9) Decisions of a Constituent Assembly:- The decision of a constituent assembly that has been put together to draft the constitution of a country can be a source of the constitution. The proposals forwarded to the constituent assembly from various quarters of the country are thoroughly discussed and the decisions are used to determine what to include in the proposed constitution.

10) International Laws:- Countries that are members of international organizations adhere strictly to international laws which can also be a source of their constitution.

11) Constitutional Conferences:- These are usually organized during constitutional development and difficult constitutional issues are discussed and resolved. Such resolutions are included in a new constitution.

12) Previous or Past Constitutions:- While preparing a new constitution due to the failure of the previous one or after a long period of military rule, the old constitution is studied and the relevant aspects of it are incorporated into the new one. Also, the past constitutions of other countries can form the basis of a new constitution.

Sources of the Nigerian Constitution

Some of the sources of the Nigerian constitution are:

1) Legislative Laws:- The legislative arm of government is one of the three arms of government that is responsible for making laws in the country. The laws made by the legislative arm of any government are passed as acts and are commonly referred to as statutes.

2) Historical Documents:- The Amalgamation Act of 1914 which created Nigeria as a colony and protectorate under British Colonial rule is a source of the Nigerian constitutions from 1922-1960.

3) Customs, Traditions and Beliefs:- The constitution is also derived from the acceptable customs, traditions and beliefs of the people.

4) Constitutional Conferences:- All Nigerian constitutions from 1951 to 1999 are products of constitutional conferences. Also, the 1979, 1989 and 1999 constitutions are products of constitutional conferences organized by military governments to ensure the handing over of government from the military to civilian and democratically elected governments.

5) International Laws:- The provisions of important documents such as the United Nations' Universal Declaration on Human Rights of 1948 form part of Nigeria's constitution.

6) The Common Law:- These are legal rules that have been made by judges as they issue rulings on cases as opposed to rules and laws made by the legislature. Before Nigeria got her independence, some laws were adopted by the colonial masters. The adopted laws consist of the ancient customs, common plea, Exchequer and Kings Bench. They are also called English law.

7) Decrees or Laws made by the Military Government:- The 1979, 1989 and 1999 constitutions were made by the military governments in power during that period.

8) Equity:- This source of Nigerian law provides the remedies of specific performance or injunction which are not obtainable in the Common Law Courts.

9) Previous Constitutions:- The 1963 constitution had its major source in the Independence Constitution of 1960. Similarly, the 1999 constitution has the 1979 and 1989 constitutions as part of its major sources.

Features of a Constitution

1. It contains the constitution's amendment procedure.
2. It defines citizenship and ways of acquiring citizenship.
3. It declares the people for which the constitution is written.
4. It contains the type of government the country will operate.
5. It states the structure of government that is operational in the state.

6. It specifies the political institutions that will be created and their powers.
7. It defines the party system that will exist in the country e.g. one-party system.
8. It contains a list of the fundamental human rights the citizens of a country can enjoy.
9. It specifies the administrative structure e.g. the civil service structure and its functions.
10. It contains a preamble, that is, an introduction which declares what it desires to achieve.

Functions of the Constitution

- It makes provision for judicial review.
- It directs the state in making legislation.
- It upholds the sovereignty of the nation.
- It makes provision for the separation of powers.
- It ensures the fundamental rights of its citizens.
- It specifies the form of government in the country.
- It guides the activities of the citizens of the country.
- It acts as a check for maladministration and misuse of powers.
- It makes provision for the accountability of government to the people.
- It makes provision for the independence of each organ of government.
- It states the functions of the president and cabinet (executives), legislature and judiciary.
- It lays out the procedures for several functions, administrations, legislation and execution of the government machinery.

Importance of the Nigerian Constitution

Some of the importance of the Nigerian Constitution include:

- The constitution is supreme.
- It specifies the process of creating a political party.
- It allocates power to the three arms of government.
- It specifies the fundamental human rights of the citizens.
- It states the procedure for acquiring and renouncing citizenship.
- It sets out the process for the impeachment of a president and his vice president.
- It specifies the roles of the different judges of all the courts and the criteria for their eligibility.
- It provides that before any international treaty can be effective in Nigeria, it must be enacted into law by the National Assembly.
- It states the procedure that must be followed for the creation of a new state or for the boundary adjustment of an existing state.

Types of Constitution

The types of constitutions are:

1. Written constitution
2. Unwritten constitution
3. Rigid constitution
4. Flexible constitution
5. Written Constitution

Written constitution: A written constitution is a constitution that is contained and published in a single document. It is a formal document defining the nature of the

constitutional settlement, the rules that govern the political system and the rights of citizens and governments in a codified form. According to Garner, a written constitution is a consciously planned constitution, formulated and adopted by deliberate actions of a constituent assembly or a convention.

It is written in the form of a book or series of documents and it provides a definite design of government institutions, their organizations, powers, functions and inter-relationships. The constitutions of Nigeria, Germany, Japan, Canada, Liberia, India, South Africa, France, Switzerland, the USA, etc. are written constitutions.

Features of Written Constitution

- It is often rigid in nature.
- It defines how citizenship is acquired.
- It begins with a preamble/introduction.
- It spells out the procedure for its amendment.
- It defines the structure of public and civil service.
- It defines the type of party system to be adopted.
- It stipulates the type of government to be adopted.
- It contains the fundamental human rights of the citizens.
- It clarifies the duties and powers of each organ of government.

Reasons for the Adoption of Written Constitution

- Both educated and laymen can reach it.
- It enhances references in cases of disputes.
- It prevents the possible emergence of dictatorial rule.
- It can be obtained and consulted as a single document.
- It makes it easy for citizens to know when their rights are violated.

- It can be amended or changed by following appropriate procedures.
- It clearly defines the powers and functions of each organ of government.
- It removes uncertainty normally experienced with unwritten constitutions.
- It makes it easy to identify unconstitutional acts by everybody in the state.

Merits & Demerits of Written Constitution

Merits of Written Constitution

- It can be easily consulted or referenced.
- It is clear, precise and easy to understand.
- It guarantees the fundamental human rights of the citizens.
- It cannot be easily tampered with for selfish reasons or purposes.
- It prevents dictatorship as rulers cannot exercise their powers arbitrarily.
- It makes it easy for citizens to know their rights, obligations and duties in the state.
- It reduces conflict among levels or institutions of government as the constitution specifies its powers and functions.
- It is more suitable for a federal government since it properly distributes powers between the federal and state units.

Demerits of Written Constitution

- It does not fit all types of government.
- It may not favour every part of the state.
- It is only suitable for a heterogeneous state.
- It can lead to a delay in government activities.
- It is difficult to amend; this makes it unsuitable in times of emergencies.

- It decreases the importance of public opinion since it gives more importance to written laws.
- It is limited in content and scope as the law governing a state cannot all be put down in a single document.
- It is prone to revolution; since the constitution is rigid, the citizens may revolt against the government if it fails to cope with changes in the condition of the country.
- Interpretations of a written constitution are always laced with ambiguity; different people may give different interpretations to provisions of the constitution resulting in conflicts and frequent litigation in courts.

Unwritten Constitution

An unwritten constitution is a body of rules and regulations governing the affairs of a state that is not contained in a single document. It is a type of constitution which is neither drafted nor enacted by a Constituent Assembly.

The provisions of unwritten constitutions are found in several documents, agreements, court verdicts, political precepts, parliamentary resolutions, historical charters, laws and conventions. An understanding of the constitution is obtained through reading commentary by the judiciary, government committees or legal experts.

According to Garner, an unwritten constitution is one in which most (and not all) of the rules are unwritten and they are not found in one/a single document. The constitution of Israel, the United Kingdom, New Zealand, Britain and Saudi Arabia are unwritten constitutions.

Merits & Demerits of Unwritten Constitution

Merits of Unwritten Constitution

1. It is flexible and easy to amend.
2. Its procedure for amendment is not cumbersome.
3. It enhances quick decision making and implementation.

4. It is adaptable to changing conditions and cases of emergency.
5. It promotes political stability as its flexible nature enhances smooth governance.
6. The areas of conflict resulting from its interpretation are reduced due to its flexibility.
7. It is progressive; it develops and expands with the development of the nation and ultimately becomes the symbol of public opinion.
8. It protects the country from rebellion and revolution since it can be moulded according to the demands of the revolutionaries without breaking its structure.

Demerits of Unwritten Constitution

1. It is unstable and vague.
2. It is unclear and ambiguous.
3. It can be manipulated by political leaders.
4. It may lead to the emergence of dictatorships.
5. It is not suited for democracy and federal systems.
6. It deprives citizens of knowing their rights and duties.
7. It is susceptible to abuse since the constitution is not codified.
8. It creates ambiguities which can lead to general misinterpretation.
9. It may not be suitable for multi-ethnic, multi-racial or heterogeneous societies.
10. Unconstitutional acts of government may not be promptly ascertained and dealt with.
11. It becomes a plaything of the judicial tribunals since the judiciary can interpret the unwritten laws as they desire.

12.Lack of codification of fundamental rights of citizens undermines the ability to seek redress when the rights are violated.

13.There may be a possibility of conflicts arising among the arms of government over unclear specifications of powers and functions.

Rigid Constitution

A rigid constitution is a constitution that cannot be easily amended. It requires a special procedure for amendment, that is, the amendment procedure is cumbersome, difficult or stringent.

The legislature has to pass an amendment bill usually by a majority of two-thirds (2/3) or three-fourths (3/4) in order to amend a rigid constitution. After that, the people in a referendum will ratify it before it can be amended. The objective is to emphasize that constitutional law embodies the will of the sovereign, hence it should be treated as a sacred document. Most rigid constitutions are written. Federal constitutions are written and rigid.

The constitution of the United States of America (USA) is the best example of a rigid constitution. Other examples are the Constitution of Australia, Nigeria, South Africa and Switzerland.

Merits & Demerits of Rigid Constitution

Merits of Rigid Constitution

- It protects the rights of the minority.
- It is ideal for a federal system of government.
- It discourages and combats arbitrary actions.
- It safeguards fundamental human rights effectively.
- It promotes political stability and continuity in administration.
- It is suitable for countries with large populations and multi-ethnic groups.
- It prevents manipulation since it cannot be changed at will by the government.

- It prevents the passage of hasty and ill-conceived laws as legislations pass through a rigorous process before they are passed.

Demerits of Rigid Constitution

- It can lead to rebellion or revolution.
- It may lead to complaints, litigations or civil unrest.
- It can be a source of hindrance during emergencies.
- It is difficult to amend and this might cause problems for the country.
- It is not suitable for a progressive nation where changes take place frequently.
- It frustrates developmental efforts as the constitution cannot meet the political, social, economic and cultural dynamics of the states.

Flexible Constitution

A flexible constitution is a type of constitution that can be easily amended through an ordinary process and procedure of law enactment. The amendment procedure for a flexible constitution is not difficult.

Several political scientists advocate the view that a flexible constitution is one in which the constitutional law can be amended in the same way as an ordinary law, that is, the constitutional amendments are passed in the same manner by which an ordinary law is passed.

Flexible constitutions are unwritten. The British constitution presents a classic example of a flexible constitution. Other countries that operate flexible constitutions are Israel, Canada, New Zealand, etc.

Merits & Demerits of Flexible Constitution

Merits of Flexible Constitution

1. It can be easily amended.
2. The amendment process is fast.

3. It does not hinder progress due to its adaptability.
4. It is less expensive to operate than a rigid constitution.
5. It promotes quick social, political and economic growth.
6. It can easily adapt to the needs of people due to its elasticity.
7. It prevents rebellion and revolution due to its dynamic nature.
8. It is susceptible to change and therefore suitable for emergencies and changing times.

Demerits of Flexible Constitution

- It is not suitable for a federation.
- It is less stable than a rigid constitution.
- The government may manipulate the constitution.
- It may lead to the hasty passage of bills and ill-conceived bills.
- It is not suitable for large countries with heterogeneous societies.
- It may lead to political instability due to constant changes in the constitution.
- It may lead to dictatorial rule as the political leader may assume all the power for himself.
- It is subject to different interpretations thereby giving room for constitutional ambiguities.
- It can be easily amended to satisfy those in the majority thereby ignoring the welfare of the minority.
- The ruling party is inclined to frequently amend the constitution in order to fit its narrow or personal interests.
- Since it can be changed easily, the ruling class may exploit it to deprive the citizens of their fundamental rights.

Rule of Law

Rule of law states that the law is supreme over every citizen and that everyone is subject to and below the law. This means that no one is above the law and everybody is equal before the law. The principle of rule of law was proposed by Professor A. V. Dicey in 1885. He maintained that the leaders or administrators of a country should exercise their authority in accordance with the already established laws of the land and such laws should be regarded as supreme. This means that the law should be superior and supreme to both the government and the governed.

Principles of the Rule of Law

Rule of law is the principle and procedure necessary for the protection of individuals from arbitrary government. The major principles of the rule of law are:

- 1) Personal Liberty/Fundamental Human Rights:- This means that citizens should enjoy certain rights and liberties under the law. Citizens should not be deprived of their fundamental human rights except in the interest of the nation.
- 2) Impartiality:- This means that the law is not partial; the same punishment is given to everyone no matter the position they hold or their status. Also, it means that no one is guilty until they have been tried in court and pronounced guilty.
- 3) Equality before the Law:- This means that everyone is equal in the face of the law. Every citizen, whether government or governed should be treated equally before the law; there should be no room for preferential treatment.
- 4) Supremacy of the Law:- This means that the law being supreme is superior such that no one is above the law. Even the legislature that makes the law cannot tamper with it.

Ways of Ensuring the Principles of the Rule of Law

1. Trial must be open.
2. Independent judiciary.
3. Democratic political system

4. Literate populations to know their rights.
5. Entrenchment of rights in the constitution.

Factors that Ensure the Operation of the Rule of Law

- 1) Writ of Mandamus:- This is an order issued to compel an authority on a person to do his/her lawful duty.
- 2) Legal Aids:- Government should give legal backing to those who cannot pay for the services of lawyers.
- 3) Writ of Certiorari:- This is an order given by a superior court that makes the rulings of an inferior court void.
- 4) Writ of Prohibition:- This restrains an inferior court from doing a job that does not fall within its area of jurisdiction.
- 5) Habeas Corpus:- This is an order from a high court judge, requesting the presence of a detainee in court on a stated date.
- 6) Right to Appeal:- Provisions should be made for the right to appeal. This straightens the citizens' belief in the judiciary and rule of law.
- 7) Trial of Suspects:- No secret trial of suspects should be allowed. Suspects should be well-represented by lawyers of their choice publicly.
- 8) Mass Education/Enlightenment:- There should be mass education to enable people to know their rights and when those rights are infringed upon.
- 9) Judicial Independence:- The judiciary must be free from the control of the ruling government. Also, the remuneration of judges should be free from executive control.
- 10) Freedom of the Mass Media:- The mass media should be allowed to assess and criticize public policies and programmes, to enable them to protect the interest of the citizens.
- 11) Fundamental Human Rights:- This must be entrenched in the constitution to safeguard their liberties. The citizens must understand their rights and be prepared to defend them.

Ways the Government of a State Violate the Principle of the Rule of Law

- Ineffective control of delegated legislation.
- Interference with the independence of the judiciary.
- Inability of the legislature to check the excesses of the executive.
- Flouting of decisions of the judiciary by the executive and the legislature.
- Disrespect for fundamental human rights by the government and its agents.
- Manipulation of the constitution to suit the selfish interest of the executive instead of the national interest.

Limitations to the Rule of Law

- 1) Ignorance, Illiteracy and Poverty:- These prevent citizens from knowing their rights and taking necessary actions when their rights are denied or violated.
- 2) Delegated Legislation:- Laws made at times by some of these bodies violate the principles of rule of law.
- 3) Customs and Traditions:- Respect for the customs and traditions of the people of a country may result in violations of the rule of law.
- 4) State of Emergency:- This may occur if a country is passing through a crisis and when it is imposed, the rights of the citizens are denied. A state of emergency in a country may give more powers to the government, including arresting and detaining citizens without a possible trial in court.
- 5) Diplomatic Immunity:- According to international laws and conventions, diplomats and ambassadors cannot be sued or prosecuted in the countries where they are representing their countries, rather they can be repatriated, that is, sent back to their own country.
- 6) Immunity of the Heads of State:- The Head of State cannot be prosecuted and this limits the application of the rule of law.
- 7) Parliamentary Immunity:- Lawmakers or members of the parliament cannot be prosecuted or sued based on the statements they made or any negative happenings

on the floor of the parliament no matter how false they may be. Such actions in parliament are problems to the workings of the rule of law because it means that they are not equal before the law with other citizens.

8) Immunity of Judges:- Since judges cannot be prosecuted for anything they do while in office, some of the judicial pronouncements may be based on personal interest rather than on the already established laws of the land.

9) Absence of the Independence of the Judiciary:- If the judiciary is not independent, the application of the rule of law could be defective.

10) Type of Party System:- A system of government practised in a country like the one-party system may produce a dictatorial government, thereby affecting the smooth application of the rule of law.

11) Existence of Special Administrative Tribunals:- Tribunals administer cases differently from constitutional courts. Appeal cases are not entertained, making it work contrary to the laws of the land.

12) Unlawful Detention, Arrest and Torture:- The unlawful detention, arrest and torture by law enforcement agents limit the application of the rule of law.

13) Military in Government:- The role of the military in government is seen as defective. It does not rule the people with a constitution. The laws of the country are not respected and even the judiciary is not given a free hand to adjudicate and interpret the laws of the land.

Separation of Powers

Separation of powers is a system whereby the three (3) organs of government (legislature, executive and judiciary) are made independent in terms of personnel and functions, that is, the three (3) organs of government are separated in personnel and functions. This means that no one person or organ of government should combine the legislative, executive and judicial functions of government.

The principle of separation of power was developed and popularized by a French political thinker and jurist, Baron de Montesquieu in his book entitled "Espirited Des Lois" which means "The Spirit of Laws", published in 1748. Political scientists

like John Locke, Jefferson Rousseau, Jean Bodin, Plato and Aristotle had earlier expressed their views on the principle of separation of powers.

Objectives of Separation of Power

1. To prevent abuse of power.
2. To ensure efficiency in governance.
3. To provide for checks and balances.
4. To guarantee fundamental human rights.
5. To ensure the prevalence of the rule of law.
6. To ensure and locate accountability in governance.
7. To ensure effective coordination of governmental activities.
8. To clarify the specific functions of each arm of government.
9. To ensure the division of responsibilities into distinct branches.
10. To promote specialization in governance/independence of the organs.

Reasons for the Adoption of Separation of Powers in a Country

1. To prevent dictatorship and tyranny.
2. To guarantee fundamental human rights.
3. To eliminate friction in state administration.
4. To ensure clarity of functions among the organs of government.
5. To ensure efficiency and orderliness in the administration of the state.

Merits & Demerits of Separation of Powers

Merits of Separation of Powers

1. It is democratic.
2. It ensures a stable political system in the country.

3. It leads to a division of labour and specialization in the art of governance.
4. It guarantees and maintains the rights, liberty and freedom of the citizens.
5. It avoids chaos, violence, dictatorship, tyranny and oppression in a country.
6. It prevents the rise of dictatorship because power is not vested in one person.
7. It maintains law and order which ensures rapid progress and economic and political development.
8. Separation of powers without unnecessary interference makes it easy for the smooth running of government.
9. The separation of power between all arms coupled with checks and balances will reduce the chances of abuse of power.
10. It increases the efficiency of government; this is possible because each arm of government is aware of its functions and can concentrate on carrying out these functions.

Demerits of Separation of Powers

1. The theory separates functions not power.
2. Its application may lead to unhealthy rivalry among the organs of government.
3. Strict application of this principle slows down the smooth running of government.
4. It is not totally viable because of the area of interference as the organs exercise their functions.
5. It makes it difficult for harmony, cooperation and coordination to exist among the arms of government.
6. This principle is a misnomer because what it means is a separation of function and not a separation of powers.
7. Co-operation between organs of government may become difficult when so much emphasis is laid on separation.

8. It is not fully possible because some functions meant for an arm of government are still being carried out by another arm.
9. It is flawed in the sense that, in different systems of government, one arm of government is more powerful than the other. For example, the legislative is the most powerful in the parliamentary system of government.

Separation of Power in the Presidential System of Government

The government is divided into three arms in the presidential system of government and the functions are divided between these arms.

The operation of the principle of separation of power works in the following ways in the presidential system of government:

1. The President or Executive Arm: The president is directly elected by the citizens. According to the constitution, he is not allowed to appoint his ministers from the parliament but from outside. The president performs both ceremonial duties and governmental functions.
2. The Legislature or Legislative Arm: The legislature is responsible for making laws for the state. They are not allowed to become members of the executive according to the constitution.
3. The Judiciary or Judicial arm: They are recommended by the Judicial Council Service to the president for an appointment. Their function is to interpret the laws made by the legislature and settle disputes between individuals or between the state and an individual.

In summary, the operation of the principle of power in the presidential system of government is:

1. There is the operation of checks and balances.
2. No single individual takes up membership in more than one organ of government.
3. The legislature makes laws, the executive applies/implements laws and the judiciary interprets laws.

4. No one or organ of government is to combine the legislative, executive and judicial functions or powers.
5. None of the three organs of government should usurp the powers or interfere in the workings of the other two organs.

Checks & Balances

Checks and balances refer to the control, overlap and supervision of the organs of government by other organs to prevent arbitrary use of power. The principle of checks and balances is one in which the arms of government serve as 'watchdogs' for each other.

This principle was propounded by Baron Charles de Montesquieu to check the problems inherent in the principle of separation of power. It was established to augment the principle of separation of power. The activities of each arm are subject to vetting by the other arms so that none of the arms has absolute power, leading to an abuse of power. This ensures accountability and responsibility of leaders, prevention of the abuse of power and protection of fundamental human rights.

Merits of Checks and Balances

- It allows each arm to have liberty.
- It prevents leaders from becoming tyrants.
- It makes the government democratic and stable.
- It gives all the organs of government equal power.
- It guarantees respect for fundamental human rights.
- It promotes accountability and responsible government.
- It prevents excessive use of power by any organ of government.
- It leads to strict compliance with the provision of the constitution.
- It makes government officials cautious and meticulous in carrying out their official functions.

- It promotes efficiency and orderliness in government as overlapping of functions enhances quick decision making and implementation.

Demerits of Checks and Balances

- It makes the law-making and decision-making process slow.
- The veto power of the executive can be overridden by the legislature.
- It may cause a rift or political instability due to power tussles or conflicts over areas of jurisdiction among the organs of government.
- The president's power to declare war against another country can be incapacitated by the legislature's refusal (a 2/3 majority is required by the president).
- One organ of government may interfere with the functions and powers of the other organs. For example, through the exercise of the prerogative of mercy by the president, he interferes with the functions of the judiciary.

Fundamental Human Rights

Fundamental Human Rights are inalienable freedoms that individuals are entitled to in the state. They are rights enjoyed by humans because they are humans. Human rights are the natural rights and privileges enjoyed by citizens of the state and they are usually stated in the constitution. In 1948, the United Nations Organization adopted the universal declaration of human rights to protect against human rights abuses and violations worldwide.

List of Fundamental Human Rights of a Citizen (1999 constitution)

- 1) Right to Life:- Everybody has a right to life. Suicide and homicide are not permitted but one can lose his life through a court sentence.
- 2) Right to Freedom of Movement:- Every citizen of Nigeria is free to travel or reside in any place of his choice. He is free to legally move around except in the lawful execution of judgement passed by a law court.

3) Right to Personal Liberty:- Unlawful detention and intimidation are not permitted in any civilized society except for convicts or those suffering from infectious diseases.

4) Right to Peaceful Assembly and Association:- Everybody is free to associate freely with any group of his choice, be it a club, political party, society, etc. as long as the association is peaceful.

5) Right to Freedom of Thought, Conscience and Religion:- Every person is free to think as he wishes and worship where and whom he pleases.

6) Right to Dignity of the Human Person:- Every person is entitled to respect for his dignity. No person should be a slave, subjected to torture or perform compulsory labour except in the course of justice or national assignments.

7) Right to Own Property:- Everybody has the right to aspire to and acquire property.

8) Right to Freedom from Discrimination:- Nobody should be subjected to any form of discrimination irrespective of education, religion, wealth, ethnicity, age, gender, etc.

9) Right to Freedom of Expression and the Press:- Everybody is entitled to his opinion and to receive information and ideas without interference.

10) Right to Private and Family Life:- Everybody is entitled to enjoy a family life without disturbance. The privacy of citizens, their homes, correspondence of telephone conversations, emails, etc. must not be tampered with.

11) Right to Fair Hearing:- Everybody must be treated equally and justly. There should be no form of discrimination irrespective of position, privileges, class, wealth, etc.

12) Right to Vote and be Voted For:- Everybody can vote for any political office or exercise their voting right by voting for any candidate of their choice without restriction.

13) Right to Education:- Everybody has the right to basic education.

14) Right to Gainful Employment:- Everybody has the right to work in any part of the country

Classification of Human Rights

Human rights are classified into three broad categories, these are;

1. Civic and Political Rights

- Right to life
- Right to petition
- Right to seek redress
- Right to peaceful assembly
- Right to freedom of conscience
- Right to freedom of personal liberty
- Right to freedom from discrimination
- Right to freedom of speech and expression
- Right to be voted for as a political candidate
- Right to vote on the attainment of adulthood
- Right to freedom of association and conscience
- Right to freedom of forming and joining associations
- Right to a fair hearing and legal representation during political litigations

2. Economic and Social Rights

- Right to work
- Right to petition
- Right to own property

- Right to fair compensation
- Right to form and join trade unions
- Right to free choice of employment
- Environmental Rights
- Right to social security
- Right to private and family life
- Right to freedom from slavery
- Right to freedom of movement
- Right to security and protection from inhumane treatment.

Limitations to Fundamental Human Rights

- Right to freedom of movement can be limited by police arrest and detention of suspects, imposition of curfew, etc.
- Right to life can be limited by criminals being executed through due process of the law, war, diseases, riots, disasters, etc.
- Right to peaceful assembly and association can be limited by war, diseases, violence, state of emergency, age, sex, legality, religion, etc.
- Right to the dignity of a human person can be limited by law enforcement's brutality, ignorance, illiteracy, insanity, religion, poverty, culture, etc.
- Right to private and family life can be limited when one is seeking political office, absence of an independent judiciary, outbreak of an epidemic, etc.
- Right to vote and be voted for can be limited by imprisonment, previous criminal records, insanity, age, residence, legally declared bankruptcy, tax payment, etc.

- Right to own property can be limited by court order, in the public interest, war, the political ideology of the state (socialism), the law of inheritance (will), state of emergencies, etc.

Other limitations to fundamental human rights are:

- Customs and traditions.
- Type of government in power.
- Illiteracy, ignorance and poverty.
- Absence of judicial independence in a state.
- Brutality, torture and excesses of law enforcement agencies.
- Declaration of state of emergency, war, natural disaster, civil unrest, etc.
- People suffering from infectious diseases may be quarantined thereby restricting the freedom of movement.
- Religion, age and sex can limit the rights of citizens in some states e.g. restriction on driving rights, right to vote and be voted for, etc.
- Delegated legislation can limit the rights of citizens, especially legislation made by local authorities or corporations that may not be giving adequate publicity.

Ways of Safeguarding Fundamental Human Rights in a State

- Provision of free legal aid.
- Respect for the rule of law.
- Giving adequate publicity to all laws.
- Respect for international laws and conventions.
- Existence of a free and independent mass media.
- Entrenchments of rights in the state's constitution.

- Enactment of laws to protect the rights of individuals.
- Existence of an impartial, free and independent judiciary.
- Establishment of an effective and efficient police system.
- Usage of public opinion effectively to protect the liberty of the citizens.
- Adherence to the doctrine of separation of powers and checks and balances.
- Citizens need to be educated and enlightened to be able to defend their rights.
- Establishment of rights of protection independent institutions such as the Public Complaints Commission, Ombudsman and Commission of Human Rights and Administrative Justice.

Constitutionalism

Constitutionalism is strict adherence to the provisions of the constitution of the land by everyone including leaders. It puts a restraint on the powers of the rulers and hinders their arbitrary exercise of powers. It can also be seen as the doctrine in which the governing power is limited by an enforceable rule of law and the concentration of power is limited by various checks and balances so that the basic rights of individuals and groups are protected.

Constitutionalism recognizes the need for government to have powers but at the same time insists that limitations be placed on the powers. The central purpose of constitutionalism is to limit governmental power and check and restrain the persons who hold public offices and exercise political authority.

Elements of Constitutionalism

- Rule of law.
- Separation of power.
- Constitutional review.
- Checks and balances.
- Independent judiciary.

- Respect for individual rights.
- Civilian control of the military.
- Responsible and accountable government.
- Sovereignty of the people and democratic government.

Factors that Promote Constitutionalism

- Independent judiciary.
- Existence of free press.
- Observance of rule of law.
- Existence of a constitution.
- Free, fair and periodic election.
- Nature/system of government.
- Existence of a multi-party system.
- Tolerance of opposition/opposing views.
- Raising the level of literacy/civic education.
- Accountability and transparency in governance.
- An elaborate process of amending the constitution.
- Fixed term of office for elected political office holders.
- Existence of separation of powers/checks and balances.
- Entrenchment of fundamental human rights in the constitution.

Centralization of Power

Centralization of power refers to an administrative system whereby political power is concentrated in a single central authority. In such a centralized system of government, there is no constitutional provision for the sharing of governmental

powers between the single central authority and any other body but powers can be delegated to subordinate bodies.

The highest degree of centralization is achieved where all powers of government are vested in a central authority or a unitary state. In such a unitary state, there is only one legislature, one executive and one judiciary. Britain, France and Italy are examples of centralized states.

Reasons for the Adoption of Centralization of Power

- Small-sized state.
- Flexible constitution.
- Lack of fear of domination.
- Lack of conflict of authority.
- Absence of tribal differences.
- Common language and culture.
- Lack of marked economic inequalities.
- No sharp differences in religion and beliefs.
- Absence of minority groups and strong loyalty to the central government.
- No constitutional division of power between the central government and other component units.

Merits & Demerits of Centralization of Power

Merits of Centralization of Power

- It prevents the waste of resources.
- It promotes political and national unity.
- It creates a strong central government.
- There is cohesion and unity of purpose.

- Decision making and implementation are quick.
- The constitution is single and relatively easy to amend.
- It reduces conflict since there is no multiplicity of power.
- There is no conflict or confusion over areas of jurisdiction.
- It promotes uniform development as development is centrally planned.
- It enhances the effective coordination of functions of both human and material resources.
- It is not an expensive form of administration in terms of cost and personnel because there is no duplication of offices and functions.

Demerits of Centralization of Power

- Minority groups may be marginalized.
- The central government is overburdened.
- The level of development may be poor and slow.
- It is not effective for countries with large geographical territories.
- Local initiative in policy making and administration may be discouraged.
- There is no government at the grassroots, hence the government is very far from the people.
- The government may become autocratic or dictatorial because of the enormous power under its control.

Decentralization of Power

Decentralization of power refers to a system of governmental administration in which powers are not concentrated in a single central authority but shared with component regions, states, provinces and local units. Such powers are clearly specified in the constitution or enabling act/law of a country. It involves devolution,

delegation and deconcentration of powers. The USA, Nigeria, Canada, India, etc. are examples of decentralized countries.

Forms of Decentralization

1) Deconcentration:- This is the weakest form of decentralization. It refers to a system/model of administration in which political powers are shared in such a way that the component units (states/regions) are not directly subordinate to the central authority. The component units derive their powers and authority from the constitution. It is mostly used in unitary states.

2) Devolution:- This is a system of administration whereby units are created by the central government and allotted governmental powers and functions. The central government may decide to set up or create subordinate levels of government in different parts of the country. This applies to unitary government in which the country may be split into units for administrative convenience. Britain, Northern Ireland and South Africa are examples of this form of decentralization.

Merits & Demerits of Decentralization of Power

Merits of Decentralization of Power

- Political unity is achieved.
- It leads to quick development.
- it allays the fear of domination.
- It encourages wider consultation.
- It protects the interest of minority groups.
- It brings the government nearer to the people.
- It gives room for quick response to local needs.
- It reduces the workload of the central government.
- It tends to mobilize the grassroots for national development.
- It encourages wider participation by the local people in government affairs.

- It reduces the volume of work at the national level, thus promoting efficiency.
- It prevents the emergence of a dictatorship as there are checks and balances.
- It encourages political stability because the various components are well represented in government.
- It affords opportunities for leadership training e.g. leaders graduate from regional to central government positions.

Demerits of Decentralization of Power

- It may endanger political unity.
- It promotes uneven development.
- It may promote political instability.
- It breeds sectionalism in the country.
- Functions in government are duplicated.
- The rights of minority groups may not be guaranteed.
- The centre is weak because of the autonomy of the units.
- Amendment of the constitution is rigid, difficult and time-consuming.
- It encourages slow decision making due to the wide scope of consultations.
- It is expensive as it requires a lot of resources and personnel due to duplication of offices and functions.
- There may be friction and disagreements over areas of jurisdiction among the different tiers of government.

Centralization of Power vs Decentralization of Power

The differences between centralization and decentralization of power are:

1. In centralization, the constitution is flexible while that of decentralization is rigid.
2. The constitution in centralization is unwritten while that of decentralization is written.
3. In centralization, there is the supremacy of the legislature while in decentralization, there is the supremacy of the constitution.
4. Centralization is effective in relatively small states with low populations while decentralization is effective in large states with high populations.
5. In centralization, the constitution recognizes only the central government while in decentralization, the constitution recognizes other units of government.
6. In centralization, power is concentrated on a single decision making body while in decentralization, power is shared between the central government and other units of government.

Delegated Legislation

Delegated legislation is the practice by which the parliament gives some of its law-making functions and powers to other bodies and institutions that are subject to control by the parliament. It refers to the exercise of legislative power by an agency that answers to the legislature.

Delegated legislation is a law, rule or regulation which is made by authorities, bodies or persons other than the parliament/legislature but under the permission or authorization of the parliament/legislature to do so. The legislature transfers power to another body like the executive, cabinet or any other agency through delegation.

Reasons for Practising Delegated Legislation

- It saves time.
- It makes for flexibility.
- It enhances decentralization.

- It helps to make quick decisions.
- It enhances thoroughness/efficiency.
- It takes care of emergency situations.
- It reduces the workload of the legislature.
- It takes care of technical/expertise matters.
- It provides a mechanism to supplement existing laws.
- It allows for laws to be experimented with in the local areas.

Types/Forms of Delegated Legislation

1) Bye-Laws:- These are rules made by an agency (e.g. public corporations, local government authorities and other similar bodies) through powers conferred on them by the Act of Parliament to cover their areas of operation with the central government's approval.

2) Orders-in-Council:- This refers to orders made by the monarch with the full support of the legislature, usually when there is a need to make and pass such legislation e.g. during a state of emergency. In Britain, these orders are given by the sovereign (queen or lord) on some matters but with the backing of the law.

3) Court Rule Committee:- This committee is made up of judges and attorneys appointed by the Supreme Court to consider issues brought by the Supreme Court and members of the legislative and executive branches of government.

4) Statutory Instruments/Ministerial Orders:- These are orders, rules and regulations that come from a minister and are governed by an Act of Parliament. They are orders conferred on the ministry by an Act of Parliament for areas under the purview of the ministry. They are also referred to as departmental orders and are normally published in a Gazette. An example is no littering in public parks.

5) Special Procedure Orders:- These are orders or rules made by ministries to local authorities to carry out certain assignments, projects or responsibilities. They are orders laid but must be approved or cancelled within 14 days by the legislature.

6) Provisional Orders:- These are temporary general rules made by ministries that await the confirmation of the legislature. A ministry may be given the power to undertake a project e.g. mass transit/transport company, but it should be confirmed by the House of Assembly or on a temporary basis.

7) Rules of professional bodies.

8) Warrants e.g. search and bench warrants.

Merits & Demerits of Delegated Legislation

Merits of Delegated Legislation

- It gives room for rapid change.
- It allows flexibility in law-making.
- It saves parliamentary time and energy.
- It reduces the workload on the legislature.
- It gives room for technical and professional expertise.
- It allows for experimentation in the process of decision making.
- It is easily adjustable to meet unforeseen circumstances/contingencies.
- Laws made under delegated authority suit the local customs and needs of the people.
- It enhances greater participation in the decision making process by local authorities and public corporations.
- It allows for easy interpretation of a patent act e.g. Electoral Act and Electoral Commission's rules and regulations.
- It allows immediate action during emergencies, contingencies or unforeseen circumstances e.g. terrorism, strikes, natural disasters, etc.
- It allows for quick response to new developments since power is delegated to different bodies and the bulk of the work is not on just one body.

Demerits of Delegated Legislation

- Laws can be changed at will.
- It may lack enough parliamentary control.
- It may lack adequate consultation with the people.
- Parliament has insufficient time to review the legislation.
- It can lead to dictatorship, especially during emergency situations.
- There may be a possibility of backdating laws or retrospective laws.
- It may lack publicity as many people may not be aware of its existence.
- The legislature and judiciary may not effectively check delegated legislation.
- It violates parliamentary supremacy as other bodies perform legislative functions.
- It may limit the liberty of citizens in the state and be used to punish political opponents.
- It is undemocratic as it allows those that are not part of the legislature to make legislation.
- It may involve too many law-making bodies and too many laws which can confuse the populace.
- The makers of this delegated legislature are not accountable to the people but to their executives.
- It violates the principle of rule of law as non-legislative bodies not empowered by the constitution make laws.
- It violates the principle of separation of powers as the non-legislative bodies that make law can be the legislature or executive.

Control of Delegated Legislation

The following delegated legislation controls are used to safeguard individual rights and freedom:

- 1) Ministerial Control:- The minister can give directives on some delegated legislation or ban its use.
- 2) Press Control:- The criticisms by the press on some delegated legislative matters may lead to their withdrawal.
- 3) Judicial Control:- The courts or judiciary can receive and declare any delegated legislation null and void or unconstitutional.
- 4) Financial Control:- Government may send its auditors to perform its functions. This enhances effective financial management.
- 5) Petitions:- People can write petitions against an organization on issues affecting them e.g. poor management, lack of water, lack of electricity, etc.
- 6) Public Complaint Commission/Ombudsman:- They can control some administrative orders or rules made by some bodies once the report is made to them.
- 7) Committee on Statutory Control:- They can cancel a delegated legislature. Also, there is a committee on extra-parliamentary rules that monitors and supervises the laws.
- 8) Administrative Control:- The executive can set up a committee of enquiry to probe the activities of bodies which exercise delegated powers. They can set up a Public Complaints Commission to investigate any arbitrary use of delegated power.
- 9) Public Control:- The public outcry against a certain law can lead to its withdrawal. The press through constructive criticism can control delegated legislation. Also, criticism from the general public, pressure groups and public opinion is a form of control.
- 10) Parliamentary/Legislative Control:- The legislature can abolish any law it is convinced will limit the liberty of citizens. Also, the Act of Parliament which confers such power on non-legislative bodies is not to exceed the powers provided

in such Acts. All the legislation designed through delegated powers must be approved by the legislature.

Reasons for the Control of Delegated Legislation in West Africa

- To make officials accountable for their actions.
- To safeguard citizens' liberties from obnoxious laws.
- To prevent undue usurpation of the legislature's power.
- To prevent bodies with powers of delegated legislation from being autocratic.
- To prevent unnecessary duplication or contradiction of laws, rules and regulations.

Representative Government I

A representative government is a system of government in which the citizens or the electorates are allowed to elect their leaders i.e. representatives. The people exercise their political sovereignty by directly electing their representatives in an election periodically. The representatives are always elected from constituencies or electoral areas. Representative government is an indirect form of democracy.

Features of Representative Government

- Political accountability.
- Tolerance of criticisms.
- Political equality and influence.
- Political competition and choice.
- There is transparency in government.
- Existence of an independent judiciary.
- Existence and application of rule or law.
- Majority rules through free and fair elections.

- There must be the existence of press freedom.
- Existence of a constitution that will respect democratic principles.
- There is an independent umpire to organize and conduct elections.
- There must be periodic and organized elections to confer legitimacy on the system.
- There is an up-to-date electoral register that contains the names of all eligible voters.
- Universal adult suffrage is upheld where citizens eligible to vote and not barred by law exercise their franchise.

Conditions Necessary for Establishing a Representative Government

- Periodic elections.
- Free and fair elections.
- Existence of electoral laws.
- Respect for people's opinions.
- Politically enlightened electorate.
- Existence of a multi-party system.
- Independent and impartial judiciary.
- Well-articulated party programme or manifesto.
- Popular participation/up-to-date electoral register.
- Existence of an Independent Electoral Commission.
- The assembly's decision must be binding and enforceable.
- Existence of more than one candidate to contest in elections.
- The assembly must consist of equal representation of the masses.

- Proper constituency delineation to prevent giving any candidate undue advantage.
- Members must be free to discuss issues with complete frankness and reach a decision without hindrance.

Representative Government II

Merits of Representative Government

- Freedom of the press.
- Independent judiciary.
- Principle of rule of law.
- Tolerance of opposition.
- It promotes political stability.
- It respects democratic principles.
- It encourages political participation.
- It allows the people to elect political leaders.
- It ensures the accountability and responsibility of political leaders.
- It enforces majority rule and guarantees the interest of the minority.
- It prevents dictatorial, tyrannical and oppressive government through inherent checks and balances.

Demerits of Representative Government

- Problem of illiteracy.
- It is expensive to run.
- It encourages deception.
- It is prone to electoral malpractices.

- The majority rules at the expense of the minority.
- It requires frequent and open communication to be effective.
- It encourages bribery, corruption and embezzlement of public funds.
- Unhealthy rivalry that may arise from the political parties and breed political instability.
- The insecurity and dangers that surround elections may drive away better-qualified candidates to contest elections.

Meaning of Citizenship

A citizen is a legal member of the state who enjoys all rights and privileges and owes allegiance to the state. A citizen is a legal member of a given state who possesses full constitutional, legal or natural rights in the state he or she resides.

Citizenship is the legal status of a person recognized under the custom or law as a legal member of a sovereign state or belonging to a nation. Citizenship on its own is the legal relationship between the individual and the state. The citizens perform their duties and obligations on their part and the government provides social welfare and protects the human rights of the citizens.

Dual citizenship occurs when a citizen of a particular country acquires citizenship of another country. A person may have multiple citizenship but anyone who does not have citizenship of any state is said to be stateless.

Methods of Acquiring Citizenship

The provisions for obtaining Nigerian citizenship are stated in Chapter 3 of the Constitution of the Federal Republic of Nigeria 1999 known as the Nigerian Citizenship Act.

The different methods of acquiring citizenship are:

1) Citizenship by Birth:- This occurs when a person is born by parents who are citizens of the country. In Nigeria, this type of citizenship accrues to those who are born in Nigeria before and after independence (1960), a person whose parents or grandparents belong to indigenous Nigerian communities or citizens of Nigeria.

2) Citizenship by Descent:- This occurs when grandparents claimed to have migrated from somewhere. It is a type of citizenship where the parents of the person are citizens of Nigeria, regardless of the child's country of birth.

3) Citizenship by Registration:- This is obtained through marriage. The following persons are eligible to become citizens through registration; a foreign woman who marries a citizen of Nigeria, anyone who is of age (18) born outside of the country whose grandparents (either one or both) are or was a citizen of Nigeria and a foreign child adopted by Nigerian parents.

4) Citizenship by Naturalization:- A citizen of another country can apply for citizenship of another country where he/she resides. In Nigeria, this type of citizenship may be acquired upon fulfilment of the following conditions; a person who is of full age (18), has resided in Nigeria for at least 15 years, is of good character, plans to remain in Nigeria, is familiar with Nigerian languages and customs and must have a viable means of support.

5) Citizenship by Foundling:- This involves the rescuing of children on the streets.

6) Citizenship by Honorary/Conferment by the State:- An honorary citizen is one to whom the citizenship of another country is conferred as a mark of honour or outstanding qualities.

7) Citizenship by Conquest:- If a country is able to conquer another country during a war, the citizens of the conquered country become citizens of the victorious state.

8) Citizenship by Adoption through a Legal Process:- Adults who wish to adopt children do so through a legal process. This also allows aliens to be adopted.

Conditions an Alien must Satisfy before Becoming a Citizen of Another Country

The conditions an alien must satisfy before becoming a citizen of another country include:

- He/she must take the oath of allegiance.
- He/she must be of a mature age i.e. 18 years.
- He/she must have renounced his/her former nationality.

- He/she must have good character or of good reputation.
- He/she must be acceptable in the locality where he/she is residing.
- He/she must have married a citizen for not less than a period of 5 years.
- He/she must have lived in the country for a very long period of time which may range from 15-20 years.
- He/she must be capable of contributing meaningfully to the advancement and progress of the country.

Citizenship Rights/Fundamental Human Rights

Rights are legal entitlements that citizens of a state/country enjoy. Citizenship right is also referred to as Fundamental Human Rights. Human rights are simply the natural rights and privileges enjoyed by citizens of any given state which are usually outlined in the constitution of the state. It is the duty of a state to ensure that her citizens enjoy these rights.

The rights of citizens are:

- Right to life.
- Right to education.
- Right to a fair hearing.
- Right to own property.
- Right to personal liberty.
- Right to gainful employment.
- Right to vote and be voted for.
- Right to private and family life.
- Right to freedom of movement.
- Right to dignity of the human person.

- Right to freedom from discrimination.
- Right to peaceful assembly and association.
- Right to freedom of expression and the press.
- Right to freedom from slavery and forced labour.
- Right to freedom of thought, conscience and religion.
- Right to work and receive commensurate compensation.
- Right to freedom from unlawful detention and imprisonment.
- Right to compulsory acquisition of property without compensation.

Classification of Human Rights

The classification of human rights are:

1) Civic and Political Rights: These are also known as first rights. They include:

- Right to life.
- Right to petition.
- Right to seek redress.
- Right to personal liberty.
- Right to vote and be voted for.
- Right to freedom of conscience.
- Right to join and form associations.

2) Economic and Social Rights: These are also known as second rights. They include:

- Right to work.
- Right to petition.

- Right to own properties.
- Right to fair compensation.
- Right to form or join trade unions.
- Right to free choice of employment.

3) Environmental Rights: These are also known as third rights. They include:

- Right to private and family life.
- Right to freedom from slavery.
- Right to freedom of movement.
- Right to social security and protection from inhuman treatment.

4) Political Rights: The political rights of citizens include:

- Right to peaceful assembly.
- Right to freedom from discrimination.
- Right to freedom of speech and expression.
- Right to be voted for as a political candidate.
- Right to vote on the attainment of adulthood.
- Right to freedom of association and conscience.
- Right to a fair hearing and legal representation during political litigations.

Ways of Safeguarding Political Rights

- Free press.
- Democracy.
- Publication of laws.
- Independent judiciary.

- Efficient legal aid system.
- Respect for the rule of law.
- Independent electoral commission.
- Political/civic education of the citizens.
- Respect for international laws and conventions.
- Adherence to the principle of separation of powers.
- Independent, well-equipped and corrupt-free police force.
- Existence of pressure groups and civil rights organizations.
- Establishment of Public Complaints Commission/Ombudsman.
- Appropriate punishments/sanctions for political rights violators.
- Entrenchment of Fundamental Human Rights in the constitution.
- Right to freedom from discrimination on political grounds; no citizen discriminated against on political grounds.

Limitations on Human Rights

Human rights limitation or abuse refers to the infringement on the rights of an individual resulting in the individual not being able to enjoy his or her fundamental rights.

The limitations on the rights of a citizen include:

- Insanity - lunatics are confined.
- Violation of the rights of others.
- Illiteracy, poverty and ignorance.
- Declaration of a state of emergency.
- Maintenance of state security/restricted areas.

- Legal limitations e.g. slander, sedition, libel, etc.
- The nature and system of government e.g. military.
- Remand/imprisonment by a court of competent jurisdiction.
- Acquisition of an individual's property by the state for public use.
- Negative traditional practices can limit the right of the individual.
- Economic and social conditions may limit the enjoyment of rights.
- Restriction for health reasons e.g. outbreak of contagious diseases.
- Public servants under oath or secrecy have no right to release official information.
- Constitutional limitations - public and civil servants are not allowed to participate in politics, age limitation in voting, etc.

Ways the Rights of Citizens can be Protected

- Respect for the rule of law.
- Existence of a democratic rule.
- Existence of vibrant opposition.
- Freedom of the press is essential.
- Citizens' awareness of their rights.
- Reduction in poverty level in the society.
- Entrenchment of rights in the constitution.
- Existence of pressure groups in the society.
- Proper and efficient enforcement of law and order.
- Establishment of Public Complaints Commission/Ombudsman.
- Enlightenment programmes to make citizens aware of their rights.

- Respect for international conventions on human rights by the government.
- Adherence to the principle of separation of powers with effective checks and balances.
- Independent judiciary which can adjudicate on matters relating to the infringement of citizens' rights.
- Provision of legal aid to indigent or disabled members of the society to ensure that their rights are protected from injustice.

Universal Adult Suffrage

Universal Adult Suffrage is the right given to eligible qualified adults to vote and be voted for during elections irrespective of colour, race, sex or creed.

Advantages of Universal Adult Suffrage

- It prevents social discrimination.
- Expression of popular sovereignty.
- It protects the interest of minorities.
- All eligible people have the right to vote.
- It confers legitimacy on the government.
- It safeguards both civil and political rights.
- It promotes the principle of one man one vote.
- It promotes/encourages political participation.
- It enhances/promotes national unity and integration.
- It enhances probity and accountability in government.
- It promotes representative and inclusive government.
- It arouses the interest of the citizens in government and governance.

- It allows for equal opportunities for all qualified citizens to take part in politics.

Duties & Obligations of Citizens

Duties are things that all citizens are expected to do because they are morally and legally right and justified by the government. An obligation is the feeling of necessity to do something or an appeal to the conscience. While duties are compulsory and failure to carry them out will attract legally recognized sanctions, obligations do not have the full backing of the law.

The duties and obligations of citizens include:

- Obedience to the law.
- Loyalty to the country.
- Voting during elections.
- Payment of taxes and rates.
- Rendering national services.
- Showing hospitality to visitors.
- Protection of public properties.
- Respect for government officials.
- Respect for other people's rights.
- Enlisting in the armed forces for the defence of the country.
- Enhancing and maintaining the prestige and good name of the country.
- Assisting law enforcement agencies in detecting and preventing crimes.
- Respect for national symbols e.g. coat of arms, national flag and national anthem.
- Making positive contributions to the advancement, progress and well-being of the community.

Responsibilities of a Citizen to the State

- Payment of taxes.
- Voting during elections.
- Keeping of state secrets.
- Respect for national symbols.
- Obedience to the laws of the state.
- Performance of service to the state.
- Protection of state/public properties.
- Serving as a witness and juror when summoned.
- Respecting the rights, freedom and legitimate interest of others.
- Assist law enforcement agencies in exposing crimes and criminals.
- Protecting and safeguarding the environment e.g. communal labour.
- Defence of the state against any external attacks and international insurrection.

Conditions/Ways of Losing Citizenship

- If the citizen is found guilty of treason.
- If the citizen renounces his citizenship voluntarily.
- If the citizen serves in a foreign military or government.
- If the citizen spies on his country for the country's enemies.
- If the activities of the citizen are prejudicial to the country's corporate existence.

- If the citizen is found supporting another country engaged in war with his country.
- If there is a fundamental breach of the citizenship agreement binding the citizen e.g. false declaration.
- If the citizen commits criminal offences other than minor traffic offences that attract more than two (2) years imprisonment.

Citizens vs Non-Citizens

The differences between citizens and non-citizens are:

1. Citizens can hold public office while non-citizens cannot.
2. Citizens owe allegiance to their country while non-citizens do not.
3. Citizens enjoy the legal rights of a country while non-citizens do not.
4. Citizens are legal members of the country while non-citizens are not.
5. Citizens enjoy full political, economic, civic and social rights while non-citizens do not.
6. Citizens can vote and be voted for while non-citizens can neither vote nor be voted for.
7. Citizens can exercise the right to peaceful assembly and association while non-citizens cannot.
8. Citizens can take up any job if they meet the criteria or conditions while non-citizens are restricted or excluded from certain jobs due to security reasons.
9. Citizens cannot be sent away from the country when they commit a serious offence while non-citizens that commit a serious offence can be deported to their home country.
10. The rights of citizens are defined in a country's constitution while the rights and duties of non-citizens are derived from the hospitality of the host country and immigration laws.

Meaning of Election

An election is an act or process through which the people choose their representative in a country. It is the process of selecting a person(s) for political office through voting. An election is the most democratic way of choosing leaders because the people themselves choose who will rule them.

Nigeria is made up of 36 states in addition to one Federal Capital Territory. Each state is divided into three (3) senatorial zones and one (1) in the Federal Capital Territory, bringing them to a total of 109. For the purpose of selecting those to represent the states in the Federal House of Representatives, the country is divided into constituencies through a process called delimitation of constituencies and a total of 360 members. Each state is divided into local government authorities. There are 774 local governments in Nigeria.

Voter

A voter is a person who votes or has the right to vote in an election. He is a person who is qualified, registered and willing to vote. Voters are collectively referred to as the electorates while the people to be voted for are called candidates.

Responsibilities of a Voter

- He should not campaign for candidates at the polling station.
- He must know his favourite candidates and their political parties/symbols.
- He should preserve his voter's card which he must present on the actual election day.
- He must realize that voting during elections is a political obligation of all Nigerian citizens.
- On the day of the election, he should take out his voter's card to the polling station and queue up in line.
- He must be aware that his vote is the only weapon he has to vote in good leaders and vote out bad ones.

- He must come out and register with the electoral body when it is time for the registration of voters before election day.

Voting

Voting is the action of choosing somebody in an election. Balloting is the actual process of voting.

Reasons for Making Voting Compulsory in a State

1. To make campaigning less expensive.
2. To overcome apathy and indifference in elections.
3. To make elected representatives reflect the popular choice.
4. To enable more voters to show interest in government affairs.
5. To make more citizens take decisions on crucial issues of elections.

Types of Voting

1) Voting by Post:- In this system, a registered voter votes from outside his registered area and the vote is sent through the post. This is in the case of a person travelling outside his area or country.

2) Voting by Proxy:- If a voter is absent owing to certain excuses, he could be voted for in absentia through an authorized representative.

3) Optional Voting:- In this system of voting, an eligible voter is not compelled to vote; he has the choice of voting or not.

4) Compulsory Voting:- This is a system of voting in which it is compulsory for all eligible voters to do. Proponents of this system argue that since voting is a civic duty of a citizen, failure to vote is regarded as a criminal offence and punishable under the law.

5) Secret Ballot System:- This is a system in which voters indicate support for a candidate through the ballot under complete secrecy. At the polling booth, he collects a ballot paper which bears the names and symbols of all the contesting political parties or candidates. He enters into an enclosure or moves away from

public view to thumbprint his candidate of choice and then drops the ballot into the ballot box.

Merits of Secret Ballot System

- It is democratic.
- It encourages political participation.
- It is more popular and widely accepted than any other type of voting system.
- Voters are given the freedom of choice to vote for the candidate of their choice alone.
- The voter is free to cast his vote according to his choice without any fear of intimidation or embarrassment from anybody.

Demerits of Secret Ballot System

- It is time-consuming.
- It encourages electoral malpractices.
- It is very tedious and difficult to understand.
- The electorates may not be able to handle the ballot papers well, thereby spoiling their own votes.
- It is very expensive to operate; the cost of materials needed for the election like the ballot box and ballot papers may be too costly.

6) Public or Open Ballot System:- This is a system of voting in which voters vote in an open place in the clear view of candidates and the electorate. In this system, the voters indicate their support for a candidate by a show of hands or queuing behind the candidate of their choice or his poster. There are no polling booths or ballot papers. The public system became popular during Babangida's regime in Nigeria.

Merits of Open Ballot System

- It is very simple and easy to understand.
- It makes election results to be known in a very short period of time.
- The results of this system are easy to ascertain because everything is done openly, not secretly.
- It helps to avoid double voting, unlike in secret balloting where one person can vote as many times as possible.
- It helps to prevent rigging vices such as the illegal printing of ballot papers and voter cards and thumbprinting of ballot papers.
- It is cost-effective as a lot of money that would have been used in building polling booths and printing ballot papers will be saved.

Demerits of Open Ballot System

- It can create enmity.
 - It is time-consuming.
 - It is difficult to guarantee maximum security.
 - It is difficult to control the crowd during an election where the open ballot system is adopted.
 - Many voters will be discouraged from voting in elections where an open ballot system is adopted.
 - It is often associated with intimidation and victimization of opponents, hence is highly susceptible to manipulation.
 - It will disenfranchise influential people; it will not be possible for people like the president, governors and traditional rulers to queue up openly with the masses.
- 7) Open-Secret or Secret-Open Voting:- This combines both the elements of an open and secret voting system. Voters are gathered at an open place and then they are counted to know their total number. When the actual voting

begins, each voter casts his vote at a place where nobody sees whom he votes for in turn.

Procedure for Voting

- Ban on political activities and the formation of political parties must be lifted.
- Setting up of institutions and organizations such as the Independent National Electoral Commission (INEC) to organize and conduct free and fair elections.
- Rules and regulations called Electoral Acts governing the conduct of elections are established.
- Division of the country into constituencies for the purpose of electing people into the House of Representatives.
- Registration of voters.
- Nomination and screening of candidates.
- Preparation of a reliable election timetable.
- Commencement of campaigns done by registered political parties and candidates contesting elections.
- Display of voters' registers containing the names of all registered voters for the people to see.
- Appointment of well-trained ad-hoc staff to be used by the electoral commission and assignment of electoral officials to the various polling centres.
- Distribution of the electoral materials and commencement of actual voting at the various centres.
- Counting of voters and announcement of election results by the returning officers.

Types of Election

The two major types of election are:

Direct Election

Indirect Election

Direct Election

A direct election involves the voters casting their votes directly in a political election for candidates of their choice that will represent them either in the executive or legislature without interference. It is considered to be very democratic because citizens of a country cast their votes to elect their representatives. It operates on the rule of 'one man, one vote' where each person is entitled to a vote.

Merits of Direct Election

- It is democratic.
- It is simple to operate.
- It restores voters' rights.
- It reflects the popular choice of the people.
- It gives the electorates equality of votes in the system.
- It creates an opportunity for people to know their prospective representatives.

Demerits of Direct Election

- Use of corrupt electoral officers.
- Problems of rigging during elections.
- It can encourage violence and victimization.
- Illiterates usually vote wrongly because they cannot identify party symbols.

Indirect Election

An indirect election is a system whereby the electorate will first vote for their representatives who in turn will vote for the final political office holders. It is a two-stage electoral process. First, the representatives are elected and then the representatives elect those that will form the government on behalf of the people.

Merits of Indirect Election

It is not as expensive as a direct election.

It produces less violence during elections.

The candidates are well-informed before voting.

It reduces the opportunity of rigging the election.

The best-qualified candidates are allowed to vote.

Demerits of Indirect Election

It encourages political apathy.

It denies the people their popular sovereignty.

It may breed discontent and political instability.

It encourages the emergence of mediocre leaders.

It violates the democratic principle of 'one man one vote'.

It does not offer wider political participation for citizens in the state.

The final result may not reflect the will and aspirations of the people.

It is prone to bribery, corruption and manipulation of delegates because they are few.

The procedure is cumbersome due to the involvement of stages in the voting process.

The electorates are not directly involved in the final choice of their representatives; it is therefore not a popular means of recruiting political leaders.

Other types of election include;

- 1) Referendum or Plesbicite:- This type of election is conducted for people to vote on issues and not people. It is a type of election where people vote "yes or no" on public policies or important political issues or questions such as proposed constitutional change. It is used to know the stand of people as regards national issues e.g. boundary disputes, issues of minorities in a political set-up, proposed constitutional change, etc.
- 2) General Election:- This is the election that involves all electorates voting for all available positions in government.
- 3) Primary Election:- This is the election conducted within a political party to choose the candidate that will represent the party. It is the first or preliminary election usually held within a political party to appoint delegates that will represent a party in a national conference or election.
- 4) Bye-Election:- This is an election conducted to fill vacant elective posts due to death, impeachment, resignation or disqualification of the individual holding that office. It is only conducted in the constituency where the vacancy occurred, therefore only registered voters in that particular constituency are allowed to vote and the winner will only serve for the remaining period. It is also called a by-election or special election in the United States.
- 5) Recall Election:- In this type of election, voters can oust elected officials, executive officers or judges before their official term has ended. An election follows immediately to fill the vacant positions.
- 6) Run-Off or Second Ballot Election:- This is a type of election conducted so that a winner can emerge after the first election has failed to produce a winner.
- 7) Supplementary/inconclusive election.
- 8) Re-run election.
- 9) Staggered election.

Stages of Election

The organization of an election is in three (3) major stages. These are the election preparation, the election proper and the period immediately after the election.

- Election Preparation

Before an election will be conducted in a state, the following are kept in place:

- Establishment of an electoral commission to plan, organize and conduct elections.
- The Independent Electoral Commission (the umpire) shall establish rules to guide the elections.
- Delineation of the constituency.
- Registration of voters and review of voters' registers.
- The political parties to contest for positions are to be registered.
- There will be a nomination of candidates to represent political parties in elections.
- Campaigns and rallies by the political parties and candidates to influence the decision-making.

- The Election Proper

Voting:- This is organized by the electoral commission. Voters are assigned to polling units. The electoral commission appoints ad-hoc officials that will man the units. These officials are trained prior to election day. Electoral officers check for the voter's name using the card reader machine and voter's register. If confirmed, the voter is issued a ballot paper to cast his vote.

Counting of Votes:- At the end of voting, votes are counted at various polling units and recorded. The poll officer will count and collate the scores.

Declaration of Election Results:- Election results after counting and collation are declared by the electoral commissioner of the state or chairman of the electoral commission depending on the election.

Issuance of Certificate to Winning Candidate:- Winners of the election are issued certificates of return by the commission through the returning officer.

- After Election

Immediately after the election, two activities may follow:

The elects are sworn in.

There will be entertainment of election petitions of the aggrieved by election tribunals and the courts.

In summary, the stages of an election are:

- The electoral acts and rules governing the elections are formed.
- The electoral commission which is a body that conducts the election is set up by the government.
- Electoral districts are created and delimitation of constituencies is carried out.
- Political parties are registered by the government.
- The names of eligible and qualified voters are registered. The voters' register must be displayed before an election so that each voter can know his polling booth/unit.
- Candidates are nominated by the parties; when two or more candidates are contesting from a party, a primary election is held to determine who represents the party at the general election.
- A campaign kicks off; this is the period of time set aside for political parties to tour the country with their manifestoes to the electorates.
- The electorates are allowed to cast their votes for the candidates of their choice on election day.
- After voting, the electoral commission declares the result of the election stating the winner.

- An aggrieved candidate can go to the electoral tribunal to contest the validity of an election.

Purposes of Elections in a Democratic State

The purposes elections serve in a democratic state are:

- Choices/selection of leadership.
- It promotes political participation.
- It helps to promote a sense of belonging.
- It promotes political education through campaigns.
- It confers legitimacy on government/office holders.
- It ensures competition between or among political parties.
- It promotes accountability and transparency in governance.
- It ensures a smooth transfer of political power/change of government.
- It serves as an index to measure the popularity of both parties and candidates.
- It helps to measure the level of citizens' political commitment to the political system.
- It helps to promote good governance and curtails dictatorial tendencies of government.
- It serves as a means of ensuring that political sovereignty is vested in the people in a democracy.

Importance of Election

- It promotes democracy.
- It allows the electorates to choose their leaders.
- It gives the minority an opportunity to express their opinion.

- It makes it possible for different views to be represented in the legislature.
- It makes it possible for the representatives to be accountable to the people.
- It is a peaceful and acceptable means of changing government from one regime to another.
- It is used to measure public opinion because the government will know what the people think about them.
- Political parties and the electoral commission educate the electorate about the electoral process during an election.
- In an ideal situation, it leads to healthy competition among political parties as they try to win the love of the electorate.

Disadvantages/Demerits of Election

- It can cause disunity in the country.
- It can divide the country into rival groups.
- A lot of money and materials are spent in conducting elections.
- Competent and experienced personnel may not be used in the administration.
- Rigging of election may put people of dubious intentions into the government.
- The party in government may decide not to assist areas that did not vote or support them during elections.

Suffrage/Franchise

Suffrage is the ability or right to vote and be voted for in a public or political election. It is the inalienable right of citizens to vote in an election. It is granted to only qualified citizens who are of the voting age of the state and have met other qualifications as defined by the law of the state. A franchise is the political right of qualified citizens to vote and be voted for in an election. Franchise and suffrage both refer to the ability and right of someone to vote in an election.

Evolution of Suffrage

Before 1900, different types of voting existed and suffrage was extended to a very selected few. Qualification of suffrage passed through several stages until age qualification was achieved in most countries.

1) Nobility Suffrage or Membership by some Association:- In the medieval age in Europe, suffrage was granted to only the privileged noble class because of the position they occupied in society.

2) Property Suffrage:- Qualification of suffrage was lowered in the 18th century. Individual revolution in Europe saw the emergence of a new class of few rich men other than the noble class who demanded that suffrage be extended to them due to their newfound wealth. This resulted in the privileged being granted multiple voting rights.

3) Male Adult Suffrage:- This existed in the late 19th century. Male adult citizens were allowed to vote and all social restrictions on adult male citizens from voting were removed.

4) Adult Suffrage:- In the early 20th century, adult suffrage was extended to women in Belgium, 1918 in Great Britain, 1920 in the USA, 1939 in Italy, France and Japan, 1954 in Southern Nigeria and 1979 in Northern Nigeria.

5) Universal Adult Suffrage or Unlimited Suffrage:- This is the right given to eligible qualified adults to vote and be voted for during elections irrespective of race, colour, sex or creed. It is the right of all qualified citizens (both male and female) to vote and be voted for irrespective of sex, religion, race or economic standing.

Types of Suffrage

1) Limited Franchise or Restricted Suffrage

This is the eligibility for voting and being voted for based on certain criteria such as race, sex, property, etc. In this type, it is only adults that fulfil certain conditions that can vote.

The conditions may include any of the following;

Sex - In some countries, the sex of a person decides whether they can vote or not.

Race/colour - Restriction is placed on voting rights because of a person's race or colour.

An individual needs to be a citizen of a place or must have lived for a certain period before they can vote or be voted for.

The level of education also determines if a person can vote or be voted for in some countries.

Merits of Limited Suffrage

- It is less expensive as it requires fewer resources for planning and execution.
- The right to vote is granted to those with sound judgement or informed minds.
- It makes use of better-qualified candidates when compared to universal adult suffrage.

Demerits of Limited Suffrage

- It negates fair play and democracy.
- It leaves a good number of citizens disenfranchised.
- It encourages political inequality and limits political enlightenment.

2) Unlimited Franchise or Universal Adult Suffrage

In this type of franchise/suffrage, all qualified adults (both men and women) are allowed to vote and be voted for. It is democratic and constitutional.

Some conditions to be met under this type of suffrage are;

- There is a certain age a person must be before they can vote or be voted e.g. 18 years in Nigeria and 21 years in India.
- Only legal citizens of a country can vote or be voted for.

- Only people who are mentally fit can vote or be voted for.
- All qualified citizens must register to participate in elections.
- Only people who have resided in an area for a long period of time can vote and be voted for.

Merits/Advantages of Universal Adult Suffrage

- It prevents social discrimination.
- It expresses popular sovereignty.
- It protects the interest of minorities.
- All eligible people have the right to vote.
- It confers legitimacy on the government.
- It safeguards both civil and political rights.
- It promotes/encourages political participation.
- It promotes the principle of 'one man one vote'.
- It enhances/promotes national unity and integration.
- It promotes representative and inclusive government.
- It enhances probity and accountability in government.
- It arouses the interest of the citizens in government and governance.
- It allows for equal opportunities for all qualified citizens to take part in politics.

Demerits/Disadvantages of Universal Adult Suffrage

- It allows many adults who may not be rational and objective to vote.
- Majority of the voters are poor; many end up selling their votes to the highest bidder.

- There is an increase in intimidation, thuggery and harassment of opponents and this encourages political apathy.
- It may breed electoral malpractice as the electoral commission may not effectively control the large number of votes that may be participating in elections.

Conditions for Exercising Suffrage

- 1) Citizenship:- You must be a legal citizen of a country in order to vote in the country.
- 2) Mental Balance:- A voter must be mentally sound and sane enough to make informed decisions on voting in an election.
- 3) Age:- This qualifies citizens to vote and it varies from one country to another. For example, in Nigeria, the voting age is 18 years.
- 4) Registration:- A voter needs to register before voting. It is the duty of the electoral commission to make adequate preparation for voter registration.
- 5) Sex/Gender:- In some countries, the sex or gender of voters is a condition to exercise suffrage. Also, women are restricted from vying for elective offices in some countries.
- 6) Residence:- You must have lived in a country for a considerable period of time in order to vote in the country. In Nigeria, if you relocate to a new area after registration, you need to inform INEC so that your voting centre can be transferred to the centre nearest to you.
- 7) Education:- Educational qualification is an important condition for exercising suffrage. There are different levels of educational qualification for different electoral offices. For example, in Nigeria, the constitution or electoral laws specify educational qualifications for each elective post.

Electoral System

An electoral system is a process or method through which the citizens choose or elect representatives in the government or political posts. Also, it includes the

conditions necessary for the nomination of candidates, election/voting procedures and determination of election results.

Features of an Electoral System

- Adoption of a secret voting system.
- Adoption of universal adult suffrage.
- There should be a public display of voters' lists.
- Delimitation of the country into constituencies.
- Regular and periodic elections as stipulated in the constitution.
- Provision for the representation of all interest groups in the legislature.
- Provision of election materials such as ballot papers, ballot boxes, ink, etc.
- There should be an acceptable way of nominating candidates for elections.
- The counting of votes should be made public with the immediate release of results.
- The requirements for qualification as an election candidate must be clearly stipulated.
- Compilation of comprehensive voters' register that should embrace all qualified voters.
- Proper education of the people about their political rights, elections and political system.
- There should be an independent judiciary that will handle election petitions without fear or favouritism.
- Formation of an impartial and independent electoral body/commission to organize and conduct elections.
- Qualified citizens should exercise their voting rights without any fear of intimidation, victimization or molestation.

Types of Electoral System

- Simple majority or plurality system
- Absolute majority system
- Second ballot system
- Alternative system
- Proportional representative

Simple Majority (Plurality) System

A simple majority or plurality system is an electoral system in which the candidate with the highest number of votes is declared the winner in an election. In this system, the candidate who secures the highest number of votes even though he might not have secured an absolute majority of votes cast is declared elected and the winner in an election. It is also referred to as the "first past the post system". This system is adopted in Canada, Britain and USA.

Merits of Simple Majority/Plurality System

- It ensures effective governance and strong opposition.
- It discourages the proliferation of unviable political parties.
- It is practicable in both the literate and illiterate communities.
- It prevents the need for the formation of a coalition government.
- It is a transparent process, thereby discouraging electoral violence.
- It produces a clear-cut winner and majority for a particular political party.
- It makes the winner more responsible and accountable to the constituents.
- It discourages too many independent candidates from standing in an election.
- It does not waste time; the winner is declared immediately after counting votes.

- It is less expensive/cheap to adopt; no expenses are incurred on a second or repeated ballot.
- It ensures political stability, thereby reducing the tension and anxiety of waiting for further ballots.
- It simplifies voting procedures; there is no difficulty in counting votes, coalition and declaration of results.

Demerits of Simple Majority/Plurality System

- It promotes ethnicity in national politics.
- Smaller parties have little chance of winning elections.
- It may encourage the election of mediocre candidates.
- Sometimes, it works against the wishes of a majority of the voters.
- It is easier to manipulate/rig elections conducted under this system.
- The system does not reflect clearly the strength of the political parties.
- It gives a wrong impression about the popularity and legitimacy of the winner.
- It is undemocratic because the combined votes of losers may exceed that of the winner.
- It gives room for gerrymandering (the process of dividing or arranging constituencies to favour a particular political party or candidate in an election).

Absolute Majority System

The absolute majority system is an electoral requirement or format in which a candidate has to score more than 50% of the total votes cast before being declared elected. In this system, the candidate who gets more than half the votes is declared the winner. It is easy to operate in a two-party system where there are only two contestants. In a multi-party system where there are more than two contestants, it

may be difficult for a winner to emerge at the first round of voting, resulting in second balloting.

Merits of Absolute Majority System

- It produces credible candidates.
- It reflects the wishes of the people.
- The winner enjoys the support of the majority.
- It leaves nobody in doubt about who wins the election.
- An unpopular candidate can not emerge as the winner.
- It is fair to all political parties and candidates that contested the election.
- It promotes active participation as both the party and candidate work very hard to get the support of the people.
- It promotes political stability as the political parties and candidates are convinced that the winner won the election.
- The number of seats enjoyed by each political party in the parliament is a reflection of the support it enjoys from the people.

Demerits of Absolute Majority System

- It can lead to political tension and violence.
- It encourages electoral malpractice/rigging.
- It tends to weaken other smaller political parties.
- It is complicated as it involves a lot of calculations.
- It cannot work very well where most of the voters are illiterate.
- It is costly/expensive both in time and finance, especially when the process of voting is repeated.

- The result of the election is unnecessarily delayed if a winner could not emerge after the first balloting.
- Voters whose candidates are dropped in the first ballot may not wish to participate in the second ballot, leading to voters' apathy.

Second Ballot (Run-Off) System

The second ballot or run-off system is an electoral system in which two candidates that secured the highest number of votes (in the first voting) are made to face each other in the second round of voting (second ballot) at a later date and the candidate with the highest number of votes will be declared the winner.

It involves two elections; in the first one, a successful candidate is required to have 50% of the votes plus one i.e. 51% (absolute majority). If no candidate gets the absolute majority, the candidates with a lower number of votes are asked to drop out of the elections and another election is held. The voters who supported the other candidate that is no longer in the contest can switch their votes to either of the two leading contestants. A second ballot is an abbreviated form of a repeated ballot system.

Merits of Second Ballot System

- A winner that emerges enjoys the support of the majority.
- Smaller political parties can secure seats in the parliament based on their popularity.
- It eliminates the exhaustion of voters and political apathy through series/repeated voting.
- It gives the electorate and political parties room to participate in government through elections.
- It ensures that all votes count in determining a winner as the votes of the losers are switched to the two last candidates on the second ballot.

Demerits of Second Ballot System

- It can result in political apathy.
- Election results may be delayed.
- It is expensive and time-consuming.
- It requires literate voters to work effectively.
- It can encourage election malpractice and manoeuvring.
- Working out the election results is complicated and cumbersome.
- It can cause political instability, especially where the election result is perceived to have been manoeuvred.

Alternative System

The alternative system is an electoral system in which the electorate presents candidates in order of preference and the votes of the weaker candidates are shared among the stronger ones. Voters are issued ballot papers in which they must indicate their preferences in order of preference i.e. 1st, 2nd, 3rd, etc. The candidate with the least preference is dropped and their vote is distributed to other candidates according to the voter's second preference. The candidates with the least preference are repeatedly knocked out until a winner emerges.

Merits of Alternative System

- It avoids the waste of surplus votes.
- It does not enthrone mediocre into power.
- Candidates backed by the votes are elected in this system.
- It represents the interest of the different groups in a country.
- It is more democratic than the plurality system because it takes care of the majority of the voters.

Demerits of Alternative System

- It is very difficult to ascertain election results.
- It is difficult to operate as a result of its complexities.
- It encourages the formation of many political parties.
- It is very expensive to operate and time and energy are wasted.
- It cannot operate very well in underdeveloped nations because a majority of the citizens are illiterates that cannot understand the system.

Proportional Representation

Proportional representation is an electoral system in which parties are allocated seats on the percentage of votes in an election. The system allocates seats according to the number of popular votes a party receives. It is used to elect representatives into the legislature. The total number of votes which a party or group scores are calculated in proportion to the total number of votes cast.

Types of Proportional Representation

- 1) List System:- In this system, the electorate votes for a list of candidates presented by a political party and each party wins the number of seats in that constituency according to votes cast for that list.
- 2) Single Transferable Vote:- In this system, voters vote for parties rather than candidates. Parties prepare lists in order of which they want their candidates to be elected and these names are printed in that order on the ballot papers. After counting the votes, an electoral quota is established i.e. the minimum number of votes needed by a candidate to win one of the seats. The surplus votes are redistributed to other candidates according to the voter's order of preference.

Merits of Proportional Representation

- It ensures majority rule.
- It checks misrule or dictatorship.
- It avoids the waste of surplus votes.

- It gives a wider choice to the voters.
- It is suitable for heterogeneous countries.
- It gives room for the representation of minority parties in the legislature.
- It gives voters the chance to choose candidates on both personal and party merits.

Demerits of Proportional Representation

- It is very expensive to operate.
- It is a complicated form of election.
- It does not create room for political stability.
- It encourages the multiplication of political parties which results in election violence.
- The multiplication of political parties makes it difficult for voters to assess them very well before voting.

Constituency

A constituency is a district or a geographical area created by an Electoral Commission for the election of one or more persons into the legislature. It is an electoral district where the electorate exercises their right to elect their representatives into government/parliament. The division of a country into constituencies is referred to as delimitation and it makes for equitability in the allocation of parliamentary seats. The electoral commission delineates states into constituencies for electoral purposes.

Types of Constituency

1) Single Member Constituency:- This is an electoral district or area that elects one member into the legislature to represent their interest. Nigeria adopts this method.

Merits of Single Member Constituency

- It encourages active participation.

- It is easy to operate as the winners emerge easily.
- It stimulates the interests of the voters in the election.
- It results in the emergence of the most popular candidate.
- It ensures equal representation of the distributive population.
- The constituencies are small, therefore it enforces accountability.
- It enables the voters to have a better knowledge of their candidates.
- It provides community support/it encourages candidates who are community-based.
- It makes it easy for a party/candidate to win a majority in the legislature and thus maintain political stability.
- The small size of the constituencies makes personal contact between voters and representatives possible and easier.
- It is less expensive as opposed to multi-member constituency elections where election materials and personnel are fewer.

Demerits of Single Member Constituency

- It gives a less accurate reflection of popular votes.
- It can lead to poor representation of the interest of minorities in the constituency.
- It promotes the interest of its constituency to the detriment of the national interest.
- It makes it possible for elected representatives who are parochial and over-ambitious to overstay in power.
- At times, the constituency is divided in such a manner as to manipulate elections to favour the government of the day.

2) Multi-Member Constituency:- In this type of constituency, more than one representative is elected from each constituency. A specific number of seats are allotted to each constituency and a voter may vote more than once. The number of votes a voter can cast depends on the number of seats to be filled. This system is not too popular as most countries operate single-member constituencies.

Merits of Multi-Member Constituency

- The interest of the minority is better represented.
- Political parties may find it difficult to influence election results or bribe their way to power.
- Minority political parties thrive as these political parties may secure few seats in the legislature.
- It enhances a greater representation of the people in government as more than one seat is allotted to a constituency.

Demerits of Multi-Member Constituency

- Mediocre candidates may end up being elected into office.
- The voters may have poor knowledge of the candidates they are voting for.
- There may be no bond between the representatives and the people in the constituency.
- The electorate may not know which of the representatives to hold accountable for poor representation in the government.
- There may be poor or defective representation in the government as each representative may be waiting for the others to take up the responsibility

Delineation of Constituency

Delineation of a constituency is the process of dividing/sharing the state into electoral districts, areas or wards for the purpose of election.

Factors that Affect the Delineation of Constituencies

- The composition of the interest groups that are in an area is considered to give everyone a sense of belonging.
- Population - areas that are small with a high population may be a constituency and a large area that is sparsely populated may be a constituency.
- Administrative convenience - the electoral commission may carve out constituencies in a manner that will make its work easier.

Problems Affecting the Delimitation of Constituencies

- 1) Ethnic Problem:- Every ethnic group may want to have its own constituency irrespective of the population or size.
- 2) Lack of Trained Manpower:- Delimitation of constituencies is not handled by experts as a result of the inadequacy of trained manpower in West Africa.
- 3) Spatial Dispersion of People:- Many people living in most rural areas in West Africa are scattered in bushes without any sign of human settlement in those areas.
- 4) Political Gerrymandering:- The political party in power may manipulate the delimitation in order to give it undue political advantages in subsequent elections.
- 5) Inadequate Means of Transport and Communication:- Many areas of West Africa are inaccessible as a result of a lack of good roads and means of sending and receiving messages.
- 6) Religious Differences:- Where there are many religious groups and differences, problems will arise if the different religious groups are to be lumped together in the same constituency.
- 7) Absence of Accurate Population Census:- Many countries, especially in West Africa lack reliable demographic figures that will make an equitable distribution of constituencies possible.

Electoral Management Body

An electoral management body is an independent body established by the constitution to conduct free and fair elections in a state.

The ways in which inadequate funding affects the effective performance of the Electoral Management Body are:

- Inability to recruit and retain competent staff.
- Inability to revise the voters' register regularly.
- Inadequate training of both permanent and ad-hoc staff.
- Inability to effectively supervise the conduct of elections.
- Inability to pay attractive remuneration to the electoral staff.
- Inability to demarcate constituencies to reflect the rising population.
- Inability to provide adequate security before, during and after elections.
- Inability to educate, enlighten and give political awareness to the electorate.
- Inability to provide adequate logistics necessary for the conduct of elections.

Electoral Commission

Electoral Commission is an independent and impartial body responsible for organizing and conducting elections. The electoral commission must be independent of any form of control to carry out its function effectively.

Past Electoral Commissions in Nigeria

- Electoral Commission in Nigeria (ECN):- This was established to conduct the 1959 election.
- Federal Electoral Commission (FEC):- This was established in 1960 with Chief Eyo Esau as the first Chairman. It conducted the immediate post-independence federal and regional elections of 1964 and 1965 in Nigeria. After this, there was an interlude to military rule.

- Federal Electoral Commission (FEDECO):- This was reconstituted in 1978 by the military government of General Olusegun Obasanjo. Chief Michael Ani was the chairman and he organized the 1979 Second Republic election. Justice Victor Ovie Whisky was the chairman in 1983 and he conducted the 1983 Second Republic election.

- The National Electoral Commission of Nigeria (NECON):- This was set up in 1987 under military rule to pioneer a transition programme. Justice Eme Awa was appointed chairman from 1987-1989, Prof. Humphrey Nwosu from 1989-1993 and Prof. Okon Uya from June-November 1993. On June 12, 1993, the Third Republic presidential election was cancelled and the military government of General Ibrahim Babangida stepped aside. Justice Summer Dagogo Jack was chairman of NECON from 1994-1998.

- The Independent National Electoral Commission (INEC):- This was set up in 1998. INEC conducted 2003, 2007, 2011, 2015, 2019 and 2023 general elections of the Fourth Republic. INEC is still the electoral commission in Nigeria.

The chairmen of INEC from 1999-2023 are:

- Justice Ephraim: 1999
- Dr. Abel Guobadia: 2000 - 2005
- Prof. Maurice Iwu: 2005 - 2010
- Prof. Attahiru Jega: 2010 - 2015
- Amina Zakari: 2015
- Prof. Mahmood Yakubu: 2015 - 2023

Features of Electoral Commission

- It should be neutral and not partisan.
- It is an independent and impartial electoral body.
- It is permitted by law to announce election results.
- It is strongly backed by the law in all of its dealings.

- It is controlled by the chairman while other members are appointed.
- The composition of the electoral commission has a stipulated tenure of office.
- It is responsible for organizing and conducting free and fair elections in a country.
- Each state of the federation has a resident commissioner who works for the body in the state.
- It is expected to be honest and just in decision-making, especially with the conduct of elections.

Functions of the Electoral Commission

- Issuance of a certificate of return.
- Counting and collating election results.
- Announcing or declaring election results.
- Education of the electorates about elections.
- Registration of voters who are qualified to vote in an election.
- Provision of election guidelines, timetables and electoral laws.
- Division of the country into electoral districts for election purposes.
- Organizing and conducting credible free and fair elections in a country.
- Display of voters' registers for the electorate to know their voting centres and units.
- Registration of political parties which will provide candidates to fill vacant political posts.
- Provision of financial grants to political parties to aid their campaigns and election actions.

- Division of the country into constituencies or electoral districts for easy conduct of elections.
- Recruitment and training of electoral officers including ad-hoc staff, presiding officers, clerks, etc.
- Provision of election materials such as ballot papers, ballot boxes, inks, card reader machines, polling booths, etc.
- Entertaining election petitions and answering issues raised in the courts pertaining to elections or election tribunals.
- Provision of adequate logistics and transportation to ensure that election materials and officers arrive at polling stations on time.
- Provision of adequate security to safeguard lives and properties and prevent unwarranted attacks on the commission's staff and voters.

Problems of Electoral Commission

- Inadequate funding or shortage of funds hinders the work of the commission.
- Desperate politicians and political parties disregard election guidelines and rules.
- Security personnel and political leaders are threats to election materials and results.
- The incumbent government sometimes sway election results in favour of their party.
- The commission is confronted with challenges such as transportation of materials, communication, etc.
- Candidates, political parties, supporters and security officials engage in election rigging to enable their candidates to win.
- Electoral commission officers have been accused and some were found guilty of bribery and corruption to compromise election results.

Election/Electoral Officials

The officials used in the conduct of elections on the polling day are:

- 1) Returning Officers:- They announce results and declare winners at polling units and wards.
- 2) Presiding Officers:- They oversee the conduct of elections at the polling stations or centres. They check the names of voters, accredit them and issue ballot papers.
- 3) Assistant Presiding Officers, Polling Assistants or Clerks:- They assist the presiding officer by checking the list of registered voters.
- 4) Chairman or Electoral Commissioners:- They move around to supervise the conduct of elections. The chairman of the commission is the chief planner and supervisor of election to ensure a free, fair and credible election.
- 5) Security Officers or Polling Orderliness:- They maintain law and order at the polling station or centre.
- 6) Polling Agents or Party Agents:- They represent the candidates or political parties at the polling booth or station.
- 7) Election Observers:- They monitor the conduct of elections and report on the fairness or otherwise of the elections.
- 8) Resident, Regional, State or Electoral Officers:- They supervise the conduct of elections at the state or regional levels.
- 9) Supervisory Officers:- They move from one polling centre to the other within the electoral wards listening to the complaints and settling minor disagreements arising from the polling units/centres.

Free & Fair Elections

A free and fair election is an election that is devoid of any form of irregularity or fraud. It is an election conducted in an atmosphere devoid of harassment, intimidation and other coercive means in order to bend the will of the voters according to the constitutional procedure. Free and fair election is a crucial element of democracy. It produces a legitimate government.

Features of Free and Fair Election

- Voters' register is updated regularly.
- Elections are periodic and regular e.g. 4 years in Nigeria.
- Existence of more than one political party to contest elections.
- Existence of an independent umpire to organize and conduct elections.
- Provision of adequate security for electoral officers, election materials and voters.
- Regular and periodic display of voter's register to prevent any disenfranchisement.
- Qualification requirements for election must be stipulated and given adequate publicity.
- Proper delineation of constituencies to prevent giving any candidate or political party undue advantage.
- Provision of adequate election personnel and materials like ballot boxes, ballot papers, polling officers, etc.

Factors that Negatively Affect Free & Fair Elections in a Democratic State

- The factors that negatively affect the conduct of free and fair elections in a democratic state include:
- Mass poverty.
- Votes buying.
- Inadequate logistics.
- Use of political thugs.
- Abuse of incumbency.
- Fake and unverified news.

- Paid and sponsored media.
- Inaccessible voting centres.
- Biased electoral institutions.
- Inadequate political education.
- Unequal access to state media.
- Manipulation of electoral processes.
- Absence of an independent judiciary.
- Illiteracy and ignorance of the electorate.
- Inadequate security at polling and collation centres.
- Inadequate funding of the electoral management body.
- The desperate desire of the political elite to win at all costs.
- Improper demarcation of electoral districts/constituencies.
- Imposition of unaffordable/prohibitive filing fees by the electoral management body.

Conditions Necessary for the Conduct of Free & Fair Election

- Secret voting should be adopted.
- Clearly defined universal suffrage.
- There must be equality of campaigning conditions.
- Election officials should be given adequate training.
- There must be political parties to contest elections.
- There should be adequate remuneration for election officials.
- Public counting of votes should be done under strict security.

- Announcement of election results should not be delayed after counting.
- Provision should be made for the challenge of election results in a court of law.
- The election process should not be disrupted by intimidation, coercion and violence.
- There must be freedom of speech and expression by the electorates, parties, candidates and media.
- The country should be divided into constituencies on an equal basis to ensure equal representation.
- The legislature must enact electoral laws to be carefully followed by the commission, candidates and electorates.
- Establishment of an electoral commission which must be impartial and must not allow interference from outside.
- Equitable treatment of electors, candidates and parties by election officials, government, military, police and judiciary.